

TEXAS NOTICE OF TOLL-FREE TELEPHONE NUMBERS AND INFORMATION AND COMPLAINT PROCEDURES

Where you can get information or make a complaint

If you have a question or a problem with a claim or your premium, contact your agent or the insurance company first. You can also get information or file a complaint with the Texas Department of Insurance. Even if you file a complaint with the Texas Department of Insurance, you should also file a complaint or appeal through your insurance company. If you don't, you may lose your right to appeal.

Donde puede obtener información o presentar una queja

Si tiene una pregunta o un problema con una reclamación o con su prima de seguro, comuníquese primero con su agente o compañía de seguros. Usted también puede obtener información o presentar una queja ante el Departamento de Seguros de Texas (Texas Department of Insurance, por su nombre en inglés). Aun si usted presenta una queja ante el Departamento de Seguros de Texas, también debe presentar una queja a través del proceso de quejas o de apelaciones de su compañía de seguros. Si no lo hace, podría perder su derecho para apelar.

AmTrust Financial Services, Inc.

To get information or file a complaint with your insurance company:

Call: VP, Senior Regulatory Counsel, at 866-203-3037

Website: <https://amtrustfinancial.com>

Email: regulatorycompliance@amtrustgroup.com

Mail: 800 Superior Avenue East, 21st Floor, Cleveland, OH 44114

To get information or file a claim with your insurance company:

Toll-free Customer Service: 1-866-272-9267

Toll-free Claims: 1-888-239-3909

Toll-free Claims Cyber: 1-877-207-1047

Website: <https://amtrustfinancial.com>

Claims Email:

General Liability

glclaimreport@amtrustgroup.com

Commercial Auto

commautoclaimreport@amtrustgroup.com

Commercial Property

commpropertyclaimreport@amtrustgroup.com

Cyber Liability

amtrustcyberclaims@amtrustgroup.com

Professional and Management Liability Claims

professionalclaims@amtrustgroup.com

Mail: 800 Superior Avenue East, 21st Floor, Cleveland, Ohio 44114

The Texas Department of Insurance

To get help with an insurance question, learn about your rights, or file a complaint with the state:

Call: 1-800-252-3439

Online: www.tdi.texas.gov

Email: ConsumerProtection@tdi.texas.gov

Mail: Consumer Protection, MC: CO-CP

Texas Department of Insurance

P.O. Box 12030, Austin, TX 78711-2030

Attach this notice to your policy: This notice is for information only and does not become a part or condition of the attached document.

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AmTrust Financial Services, Inc.

Para obtener información o para presentar una queja ante su compañía de seguros:

Llame: VP, Senior Regulatory Counsel, at 866-203-3037

En línea: <https://amtrustfinancial.com>

Correo electrónico:

regulatorycompliance@amtrustgroup.com

Dirección postal: 800 Superior Avenue East, 21st Floor, Cleveland, OH 44114

Para obtener información o presentar una reclamación ante su compañía de seguros:

Teléfono gratuito - Servicio al Cliente: 1-866-272-9267

Teléfono gratuito - Reclamaciones: 1-888-239-3909

Teléfono gratuito - Cibernetica: 1-877-207-1047

En línea: <https://amtrustfinancial.com>

Correo electrónico de Reclamaciones:

Responsabilidad civil general

glclaimreport@amtrustgroup.com

Automovil comercial

commautoclaimreport@amtrustgroup.com

Propiedad commercial

commpropertyclaimreport@amtrustgroup.com

Cibernetica amtrustcyberclaims@amtrustgroup.com

Responsabilidad Civil Profesional y Administrativa

professionalclaims@amtrustgroup.com

Dirección postal: 800 Superior Avenue East, 21st Floor, Cleveland, Ohio 44114

El Departamento de Seguros de Texas

Para obtener ayuda con una pregunta relacionada con los seguros, para conocer sus derechos o para presentar una queja ante el estado:

Llame: 1-800-252-3439

En línea: www.tdi.texas.gov

Correo electrónico: ConsumerProtection@tdi.texas.gov

Dirección postal: Consumer Protection, MC: CO-CP

Texas Department of Insurance

P.O. Box 12030, Austin, TX 78711-2030

Adjunte Este Aviso A Su Poliza: Este aviso es solamente para propósitos informativos y no se convierte en parte o en condición del documento adjunto.



AmTrustCyber

Every business has cyber risk.

Be Prepared.
Stay Protected.



800 Superior Avenue, East 21st Floor Cleveland, OH 44114
www.amtrustfinancial.com





Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

10/31/2025

RSG Specialty, LLC
330 West Newberry Road
Bloomfield CT 06002

AmTrustCyber Issued Policy

Cyberlink ASP Technology LLC
1825 Market Center Blvd Suite 460
Dallas, TX 75207

Thank you for trusting AmTrustCyber to protect your business. We appreciate your partnership and are happy to confirm the coverage outlined in the attached Policy.

AmTrustCyber cares about Policyholders. Our commitment to you is much more than a Policy. We have a specialized underwriting team ready to answer any Policy questions that you may have. We have an experienced incident response team that will get your business back up and running quickly. We have a seasoned in-house claims team that will tirelessly advocate for your business. We have partners in the field that will provide complimentary services such as risk management consulting, employee training and systems scanning – ask us about these incredible benefits.

At AmTrustCyber, your cyber safety is our priority!

Please note that Associated Industries Insurance Company, Inc. is eligible to issue an insurance policy in this state via a surplus lines broker or on a direct procurement basis and taxes for this placement will be paid by the broker and/or insured.

Should you have any questions about the coverage in our Policy or the benefits that we offer, please contact your dedicated AmTrustCyber underwriter, Lawrence Fu, at: Lawrence.Fu@amtrustgroup.com.

ANV GLOBAL SERVICES INC.

10 Madison Avenue | 3rd Floor | 07960 | Morristown | NJ United States
National License Number: 14612330
dba in CA: Global ANV Insurance Agency, Inc., CA License # 0196345
ANV Global Services Inc. is an AmTrust Financial Services Company

AmTrustCyber Services

Did you know that strengthening your security posture can boost your business by increasing customer trust?

Increase the resilience and growth potential of your business by taking advantage of the following complimentary offerings available to AmTrustCyber policyholders.

Assessment & Consultation

Security Assessment and External Vulnerability Scan

Equip your organization with the necessary knowledge with a live awareness webinar designed to help assess your organization's environment, IT infrastructure, and security practices. The analyst may then deploy an external vulnerability scan to identify potential risks. Actionable recommendations will be delivered to help your organization address security challenges and goals.

Incident Response Readiness Assessment

Is your team prepared to handle a suspected security incident? A complimentary session with a DFIR (digital forensic and incident response) expert will highlight opportunities and action steps to improve your organizational preparedness.

Google Workspace or Office 365 Security Review

Leverage our expert partners to assess the administrative security controls in your Google Workspace or Microsoft Office 365 environment. Find balance between security and operational efficiency while protecting your organization from identity or business email compromise.

Data Privacy Review

Data is among the most valuable assets in the world. Take advantage of a complimentary consultation to assess your organization's data privacy practices and regulatory requirement gaps.

SaaS Security Posture Management

Do you have full visibility into the SaaS (software-as-a-service, i.e., applications, browser extensions, programs, etc.) that your employees are using and connecting to your environment? Are you up to date on the use of artificial intelligence (AI) in

your supply chain? A complimentary assessment and review with Wing Security will provide a risk assessment for your environment, pulling back the curtain on "shadow IT" and equipping your organization with the tools and expertise to reduce software-related risk.

Click [here](#) for your free risk assessment from Wing Security or go to the following URL <https://wing.security/amtrust-wingsecurity/>

Education/Training

Security Awareness Training

Your first defense against a breach is a well-educated team! Equip your organization with the necessary knowledge with complimentary security awareness training designed to help your employees identify and avoid social engineering and phishing attacks.

Tools

Managed Detection and Response (10 free licenses)

An easy-to-install security solution with no additional expense, headcount, or administration on your part; all managed by a team of security experts. MDR combines automated technology with human expertise to rapidly identify and limit risk. This security tool, professionally managed by a team of dedicated security experts, can help insureds protect their computers, their network, and their business. And it is easily accessible at no cost for your first 10 licenses - because better protection for business doesn't have to be complicated or expensive.

Additionally, as an AmTrustCyber policy holder, you'll also have access to:

- Expert-hosted webinars on awareness, tools, and topics in information security
- Dedicated resource(s) for assistance with cybersecurity services and management
- Preferential pricing on a curated suite of security services and tools selected for impact and ease of implementation

Questions?

For questions about services included with your Cyber policy, please email amtrustcyberservices@amtrustgroup.com

Your Exclusive Offer

Free Security Solution From AmTrustCyber

At AmTrustCyber, we're committed to helping protect our customers against cyber risk.

As part of that commitment, we're pleased to provide AmTrustCyber policy holders with up to [10 MDR licenses](#) at no additional cost. All insureds – both small and large – can benefit from MDR protection. AmTrustCyber is here to help you protect your business from costly and disruptive cyber incidents.



What is MDR and how can it help?

MDR stands for Managed Detection and Response. MDR is a 24/7 security guard for your network, data, and devices - desktops, laptops, and servers. It can alert you to threats (like malicious files and links) and stop them from causing harm. It works on a totally automated basis, so you don't have to do a thing. It runs behind the scenes, so it will have no impact on your network. It offers defenses beyond basic computer security features to provide your business with effective protection and peace of mind. Best of all, it's easy to install and it's free!

AmTrustCyber teamed up with cybersecurity experts American Technology Services (ATS) to provide this incredible benefit to our insureds. Specialists at ATS will manage the tool, alert you if there are any threats, and help you to avoid the disruption and expense of a costly cyber-attack.



Download today - it's easy, quick and safe.

This important security tool takes 5 minutes to install, will not interrupt your devices in any way, runs on its own, is free and will protect your network from dangerous cyber criminals and attacks. To get started, just click on the link below and you will be guided through a simple installation – all you need is your AmTrustCyber policy number and your email and phone number. And again, you can install this tool on up to 10 devices – for free!

[Take advantage of this great benefit by clicking here.](#)

AmTrustCyber. Be Prepared. Stay Protected.



Disclaimer – This offer is exclusive to select AmTrustCyber insureds (the "Insureds") and may not be transferred or resold. The MDR solution will be provided by American Technology Services, a third-party provider of information security solutions. Usage of the complimentary MDR licenses (the "Licenses") is subject to the terms and conditions provided by American Technology Services and select Insureds will be required to agree to, and abide by, such terms and conditions. Insureds are not required to make any purchase nor agree to any future payment for the Licenses to receive this offer. Insureds' use of the Licenses is valid until the earlier of (i) 12 months from the time that an AmTrustCyber insured signs up for the license(s), or (ii) the termination of the AmTrustCyber insured's cyber insurance policy with AmTrustCyber, whichever comes first. The terms of this offer are subject to change, and the offer may be amended or revoked, at any time and for any reason including, without limitation, the commercial availability of the Licenses and/or the MDR Solution.

This offer is facilitated by hyperlinks to third-party websites or other methods to aid Insureds' access to the Licenses. Although AmTrustCyber endeavors to direct Insureds to helpful, trustworthy resources such as the MDR solution that will improve their cyber security posture and readiness, AmTrustCyber cannot guarantee software, information, products, or services provided by or at any third-party resource or track changes in the resource. Thus, neither AmTrustCyber nor any of its affiliates is responsible for the content or accuracy of any third-party website or resource or for any loss or damage of any sort resulting from the use of, or for any failure of, products or services provided at or from a third-party website or resource.

We recommend these resources on an "as is" basis and the use of such resources will be subject to their terms and licenses and no longer be protected by AmTrust's privacy policy or security practices, which may differ from the third policy or practices or other terms. Insureds should familiarize themselves with any license or use terms of, and the privacy policy and security practices of, the third-party resource, which will govern Insureds' use of that resource.

U.S. TREASURY DEPARTMENT'S OFFICE OF FOREIGN ASSETS CONTROL ("OFAC") ADVISORY NOTICE TO POLICYHOLDERS

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's web site – <http://www.treas.gov/ofac>.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.

This Face Page attaches to and becomes a part of the following policy:

Insured: Cyberlink ASP Technology LLC

Policy #: ACL1268445 00

Effective Date: 10/31/2025

Date Policy/Endorsement Received:

Zip Code of Risk Location: 75207

THIS INSURANCE CONTRACT IS WITH AN INSURER NOT LICENSED TO TRANSACT INSURANCE IN THIS STATE AND IS ISSUED AND DELIVERED AS SURPLUS LINE COVERAGE UNDER THE TEXAS INSURANCE STATUTES. THE TEXAS DEPARTMENT OF INSURANCE DOES NOT AUDIT THE FINANCES OR REVIEW THE SOLVENCY OF THE SURPLUS LINES INSURER PROVIDING THIS COVERAGE, AND THE INSURER IS NOT A MEMBER OF THE PROPERTY AND CASUALTY INSURANCE GUARANTY ASSOCIATION CREATED UNDER CHAPTER 462, INSURANCE CODE. CHAPTER 225, INSURANCE CODE, REQUIRES PAYMENT OF A 4.85 PERCENT TAX ON GROSS PREMIUM.

Rev. 4/1/09

Name and Address of Insurer:

Associated Industries Insurance Co, Inc

Name and Address of Surplus Lines Agent:

RSG Specialty, LLC

155 N Wacker, Suite 4000

Chicago, IL 60606

Premium:	\$33,000.00
TRIA Premium:	INCLUDED
Fees:	
Surplus Lines Tax:	\$1,600.50
Stamping Fee:	\$13.20
Total:	\$34,613.70

Have a complaint or need help?

If you have a problem with a claim or your premium, call your insurance company or HMO first. If you can't work out the issue, the Texas Department of Insurance may be able to help.

Even if you file a complaint with the Texas Department of Insurance, you should also file a complaint or appeal through your insurance company or HMO. If you don't, you may lose your right to appeal.

Associated Industries Insurance Co, Inc

To get information or file a complaint with your insurance company or HMO:

Call: Associated Industries Insurance Co, Inc at (800) 866-1234

Toll-free:

Online:

Email:

Mail: PO Box 812319

Boca Raton, FL 33481-2319

The Texas Department of Insurance

To get help with an insurance question or file a complaint with the state:

Call with a question: 1-800-252-3439

File a complaint: www.tdi.texas.gov

Email: ConsumerProtection@tdi.texas.gov

Mail: MC 111-1A, P.O. Box 149091, Austin, TX 78714-9091

¿Tiene una queja o necesita ayuda?

Si tiene un problema con una reclamación o con su prima de seguro, llame primero a su compañía de seguros o HMO. Si no puede resolver el problema, es posible que el Departamento de Seguros de Texas (Texas Department of Insurance, por su nombre en inglés) pueda ayudar.

Aun si usted presenta una queja ante el Departamento de Seguros de Texas, también debe presentar una queja a través del proceso de quejas o de apelaciones de su compañía de seguros o HMO. Si no lo hace, podría perder su derecho para apelar.

Associated Industries Insurance Co, Inc

Para obtener información o para presentar una queja ante su compañía de seguros o HMO:

Llame a: Associated Industries Insurance Co, Inc al (800) 866-1234

Teléfono gratuito:

En línea:

Correo electrónico:

Dirección postal: PO Box 812319

Boca Raton, FL 33481-2319

El Departamento de Seguros de Texas

Para obtener ayuda con una pregunta relacionada con los seguros o para presentar una queja ante el estado:

Llame con sus preguntas al: 1-800-252-3439

Presente una queja en: www.tdi.texas.gov

Correo electrónico: ConsumerProtection@tdi.texas.gov

Dirección postal: MC 111-1A, P.O. Box 149091, Austin, TX 78714-90



AmTrustCyber DECLARATIONS

COVERAGE FOR THE INSURED'S DIRECT LOSS APPLIES SOLELY TO INCIDENTS OR EVENTS FIRST DISCOVERED BY THE INSURED DURING THE POLICY PERIOD AND REPORTED TO THE INSURER IN ACCORDANCE WITH THE TERMS OF THIS POLICY.

COVERAGE FOR CLAIMS BROUGHT AGAINST THE INSURED APPLIES SOLELY TO CLAIMS FIRST MADE AGAINST THE INSURED DURING THE POLICY PERIOD OR EXTENDED DISCOVERY PERIOD AND REPORTED TO THE INSURER IN ACCORDANCE WITH THE TERMS OF THIS POLICY.

DEFENSE COSTS ARE PART OF AND NOT IN ADDITION TO THE AGGREGATE LIMIT OF LIABILITY. THE AGGREGATE LIMIT OF LIABILITY AVAILABLE TO PAY LOSS AND THE RETENTION SHALL BE REDUCED AND MAY BE EXHAUSTED BY THE PAYMENT OF DEFENSE COSTS. THE INSURER SHALL NOT BE LIABLE FOR DEFENSE COSTS OR THE AMOUNT OF ANY LOSS AFTER THE AGGREGATE LIMIT OF LIABILITY HAS BEEN EXHAUSTED.

POLICY NUMBER: ACL1268445 00

PRODUCER:

RSG Specialty, LLC
330 West Newberry Road, Bloomfield CT 06002

ITEM 1. POLICYHOLDER

Policyholder: Cyberlink ASP Technology LLC

DBA:

Policyholder Address: 1825 Market Center Blvd Suite 460, Dallas TX 75207

ITEM 2. POLICY PERIOD

Effective Date: 10/31/2025

Expiration date: 10/31/2026

Both at 12:01am standard time at the Policyholder's address

ITEM 3. PREMIUM

Premium: \$33,000.00

ITEM 4. EXTENDED DISCOVERY PERIOD

Extended Discovery Period: 1 Year

Extended Discovery Period Premium: 100% of Annual Premium

ANV GLOBAL SERVICES INC.

10 Madison Avenue | 3rd Floor | 07960 | Morristown | NJ United States

National License Number: 14612330

dba in CA: Global ANV Insurance Agency, Inc., CA License # 0196345

ANV Global Services Inc. is an AmTrust Financial Services Company



ITEM 5. CONTINUITY DATE & CHOICE OF LAW

Continuity Date: 10/31/2025

Choice of Law: New York

ITEM 6. NOTICE OF CLAIM, LOSS OR CIRCUMSTANCE

Email Address: AmTrustCyberClaims@amtrustgroup.com

Cyber Incident Notification:
(877) 207-1047

Mailing Address:

AmTrust North America
400 Executive Boulevard, 4th Fl
Southington, CT 06489
ATTN: AmTrustCyber Claims Department

ITEM 7. LIMITS

Aggregate Limit of Liability: \$ 3,000,000

Business Interruption Waiting Period:	8 Hours	Business Interruption from Suppliers Waiting Period:	8 Hours
Business Interruption Period of Restoration:	180 Days	Business Interruption from Suppliers Period of Restoration:	180 Days

COVERAGE FOR THE INSURED'S DIRECT LOSS

LIMIT OF COVERAGE

RETENTION

Ransom Payment:	\$3,000,000	\$25,000
Data and System Recovery:	\$3,000,000	\$25,000
Bricking Costs:	\$3,000,000	\$25,000
Business Interruption:	\$3,000,000	\$25,000
Business Interruption from Suppliers:	\$3,000,000	\$25,000
Reputation Harm:	\$3,000,000	\$25,000
Cyber Event:	\$3,000,000	\$25,000
Cyber Deception:	\$500,000	\$25,000
Proof of Loss:	\$250,000	\$25,000
Cryptojacking:	\$1,500,000	\$25,000

COVERAGE FOR CLAIMS BROUGHT AGAINST THE INSURED

LIMIT OF COVERAGE

RETENTION

Privacy and Network Security:	\$3,000,000	\$25,000
Regulatory Fines and Penalties:	\$3,000,000	\$25,000
Payment Card:	\$3,000,000	\$25,000
Media:	\$3,000,000	\$25,000



SUBJECTIVITIES

Our offer is subject to the following:

ITEM 8. ENDORSEMENTS

CY3300431222	Premium Payment And Termination Endorsement
CY3300460123	PRIOR AND PENDING LITIGATION EXCLUSION
CY3300570323	Invoice Manipulation
CY3300590323	Amend Authentication Endorsement
CY3300790523	Contingent Bodily Injury and Property Damage
CY3300960623	AMEND DEFINITION OF PRIVACY BREACH – WRONGFUL COLLECTION
CY3301281023	Betterment Costs
CY3301990924	SEC Disclosure Costs Endorsement
CY3302000124	War and Cyber War Exclusion
CY3302620625	Several Liability Notice
CY9900120321	Cap On Losses From Certified Acts Of Terrorism And Disclosure Pursuant To Terrorism Risk Insurance Act
CYRTA1110823	RT Amendatory Endorsement
DN990029TX1123	TEXAS NOTICE OF TOLL-FREE TELEPHONE NUMBERS AND INFORMATION AND COMPLAINT PROCEDURES
ILP0010104_Cyber	OFAC NOTICE



NMA1590	Nuclear Incident Exclusion
SURPLUS	Surplus Lines Endorsement
CY3300170622	Technology Services And Technology Products

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National License Number: 14612330

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ANV Global Services Inc. is an AmTrust Financial Services Company



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

COVERAGE FOR THE INSURED'S DIRECT LOSS APPLIES SOLELY TO INCIDENTS OR EVENTS FIRST DISCOVERED BY THE INSURED DURING THE POLICY PERIOD AND REPORTED TO THE INSURER IN ACCORDANCE WITH THE TERMS OF THIS POLICY.

COVERAGE FOR CLAIMS BROUGHT AGAINST THE INSURED APPLIES SOLELY TO CLAIMS FIRST MADE AGAINST THE INSURED DURING THE POLICY PERIOD OR EXTENDED DISCOVERY PERIOD AND REPORTED TO THE INSURER IN ACCORDANCE WITH THE TERMS OF THIS POLICY.

DEFENSE COSTS ARE PART OF AND NOT IN ADDITION TO THE AGGREGATE LIMIT OF LIABILITY. THE AGGREGATE LIMIT OF LIABILITY AVAILABLE TO PAY LOSS AND THE RETENTION SHALL BE REDUCED AND MAY BE EXHAUSTED BY THE PAYMENT OF DEFENSE COSTS. THE INSURER SHALL NOT BE LIABLE FOR DEFENSE COSTS OR THE AMOUNT OF ANY LOSS AFTER THE AGGREGATE LIMIT OF LIABILITY HAS BEEN EXHAUSTED.

In consideration of the payment of the premium, in reliance upon the information provided to the **Insurer**, and subject to the **Aggregate Limit of Liability** and applicable **Retention**, exclusions, conditions, and other terms of this Policy, the **Insurer** and **Company** agree as follows:

COVERAGE FOR THE INSURED'S DIRECT LOSS

The **Insurer** will indemnify the **Company** for any of the following first **Discovered** during the **Policy Period**:

Ransom Payment

Ransom Payments incurred by the **Company** directly resulting from a **Ransom Threat**.

Data and System Recovery

Data and System Recovery Costs and **Bricking Costs** incurred by the **Company** directly resulting from a **Cyber Event**.

Business Interruption

Business Interruption Loss, including **Extra Expense**, incurred by the **Company** during the **Period of Restoration** because of a **Business Interruption** directly resulting from a **Business Interruption Event**.

Business Interruption from Suppliers

Supplier Interruption Loss, including **Extra Expense**, incurred by the **Company** during the **Period of Restoration** because of a **Business Interruption** directly resulting from a **Supplier Interruption Event**.

Reputation Harm

Reputation Loss incurred by the **Company** during the **Reputation Period** because of a **Reputation Event** directly resulting from a **Cyber Event** or **Ransom Threat**.

Cyber Event

Cyber Event Costs directly resulting from a **Cyber Event**.

Cyber Deception

The **Company's** loss of **Money** or **Securities** directly resulting from a **Cyber Deception**.



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

Proof of Loss

Any reasonable and necessary costs for an **Expert** to determine the amount and the extent of any covered **Business Interruption Loss, Data and System Recovery Costs, Supplier Interruption Loss, Extra Expense, and Reputation Loss**.

Cryptojacking

The **Company's** loss of **Money** directly resulting from **Cryptojacking**.

COVERAGE FOR CLAIMS BROUGHT AGAINST THE INSURED

Privacy and Network Security

The **Insurer** will pay on behalf of the **Insured** any **Damages** and **Defense Costs** arising from a **Liability Claim** first made against an **Insured** during the **Policy Period** for any **Cyber Event**.

Regulatory Fines & Penalties

The **Insurer** will pay on behalf of the **Insured** any **Fines and Penalties** and **Defense Costs** arising from a **Regulatory Claim** first made against an **Insured** during the **Policy Period** in response to any **Cyber Event**.

Payment Card

The **Insurer** will pay on behalf of the **Insured** any **PCI Payments, PCI Investigation Costs** and **Defense Costs** arising from a **PCI Claim** first made against an **Insured** during the **Policy Period** for a **PCI Wrongful Act** that results from a **Cyber Event**.

Media

The **Insurer** will pay on behalf of the **Insured** any **Damages** and **Defense Costs** arising from a **Liability Claim** first made against an **Insured** during the **Policy Period** for a **Media Wrongful Act**.

DEFINITIONS

In this Policy the terms listed below will be defined as follows:

Additional Insured means any person or entity that the **Company** has agreed in writing to add as an **Additional Insured** under this Policy prior to the commission of any act for which such person or entity would be provided coverage under this Policy, but only to the extent the **Company** would have been liable and coverage would have been affected under the terms and conditions of this Policy had such **Claim** been made against the **Company**.

Aggregate Limit of Liability means the applicable amount specified as such in Item 7. of the Declarations.

Assumed Under Contract means any liability assumed by the **Company** in the form of a hold harmless or indemnity agreement executed with any **Third Party** prior to an incident or event giving rise to a **Liability Claim**.

Bricking Costs means costs to replace any component of a **Company Computer System** upon which electronic data of the **Company** was stored that is no longer functional as a direct result of a **Cyber Attack**.

For purposes of this definition, a **Company Computer System** or its components will be deemed no longer functional if they cannot be restored to functionality after reasonable efforts have been made, or if it would be



commercially unreasonable to incur costs to restore functionality. The cost to replace all or part of a **Company Computer System** and its components will be determined using the cost to replace items with functionally equivalent items.

Bricking Costs does not mean costs and expenses to replace any industrial machinery, assets or equipment or any component thereof including, without limitation, any physical devices used in manufacturing, logistics, warehousing, refurbishment or construction.

Business Interruption means the complete or partial interruption or the slowdown of the operations of a **Company** for a period of time that exceeds the applicable **Waiting Period**.

Business Interruption Event means any:

- (A) **Cyber Attack**;
- (B) **Unplanned Failure**;
- (C) voluntary and intentional shutdown or interruption of any **Company Computer System** by the **Company**, but only to the extent necessary to limit the loss or damage resulting from a **Cyber Event** upon or failure of any **Company Computer System** that would otherwise be incurred by the **Company**; or
- (D) intentional shutdown or interruption by the **Company** of any **Company Computer System** as expressly required by any **Regulator** as a result of a **Cyber Event**.

Business Interruption Loss means any **Loss of Profit** sustained by the **Company** and **Extra Expense**.

Business Interruption Loss will not include any:

- (1) loss resulting from the suspension, cancellation, or lapse of any lease, contract, license or orders;
- (2) liabilities to any **Third Party**;
- (3) legal expenses or costs;
- (4) consequential loss or loss incurred as a result of unfavorable business conditions;
- (5) **Data and System Recovery Costs**;
- (6) **Supplier Interruption Loss**; or
- (7) **Ransom Payment**.

Claim means any:

- (A) **Liability Claim**;
- (B) **PCI Claim**; or
- (C) **Regulatory Claim**.

Multiple **Claims** arising from **Related Events** will be considered a single **Claim** for purposes of this Policy and will be deemed made at the time of the first such **Claim**.



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

Company means the **Policyholder** and any **Subsidiary**.

Company Computer System means any **Computer System** under the operation or control of, and either owned or leased by, a **Company**.

Computer System means any hardware, software, and firmware used to provide or host computer application services to:

- (A) create, manage, automate, integrate, interpret, control, process, eliminate, modify, store, retrieve, secure or exchange information; or
- (B) create, manage, steer, modify, store, retrieve, secure, analyze, control, or monitor industrial operations.

Confidential Information means any information of a **Third Party** held by, or in the care, custody, or control of the **Insured**:

- (A) that is subject to any confidentiality agreement or confidentiality provision in a contract or agreement between the **Third Party** and the **Company**; or
- (B) that the **Company** is legally required to maintain in confidence, other than:
 - (1) **Personally Identifiable Information**; or
 - (2) any information that is lawfully available to the general public or lawfully in the public domain.

Continuity Date means the applicable date in Item 5. of the Declarations.

Cryptojacking means the unauthorized access or use of any **Company Computer System** to mine for digital currencies that directly results in additional costs incurred by the **Company** for electricity, natural gas, oil, or internet.

Cyber Attack means an intrusion into, unauthorized access or use of any **Company Computer System** or, any unauthorized modification, destruction, deletion, distribution or transmission or copying of, or rendering inaccessible, electronic data or software or consumption of computer resources of such **Company Computer System**, by any means, including, but not limited to, denial of service attacks. **Cyber Attack** includes an unauthorized distribution or transmission of malicious code or virus from the **Company Computer System** to the **Computer System** of a **Third Party**.

Cyber Attack also means the loss of use of all or part of a **Company Computer System** caused by a **Third Party**'s reprogramming of software, including firmware, which renders such **Company Computer System**, or any component thereof, useless, unusable, or ineffective with respect to its intended purpose.

Cyber Deception means any:

- (A) **Fraudulent Instruction**;
- (B) **Funds Transfer Fraud**; or
- (C) **Telephone Fraud**.

Cyber Event means any **Privacy Breach** or **Cyber Attack**.



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

Cyber Event Costs means any:

- (A) **Forensic Costs**;
- (B) **Data Breach Response Costs**;
- (C) **Voluntary Notification Costs**;
- (D) **Legal and Regulatory Advice Costs**;
- (E) **Public Relations Costs**;
- (F) **Cyber Event Guidance Costs**; or
- (G) **Rewards**.

Cyber Event Guidance Costs means the reasonable and necessary costs for an **Expert** to provide guidance and direction to the **Insured** with respect to a crisis directly resulting from a **Cyber Event**.

Cyber Terrorism means any actual, alleged, or threatened attack on a **Computer System**, where such attack, whether committed or threatened, is motivated by economic, political, religious, or ideological objectives to harm or instill fear in any person or entity.

Damages means any of the following, incurred as a result of a **Claim**:

- (A) amounts that an **Insured** is legally liable to pay to a **Third Party** in respect of judgments or arbitral awards rendered against an **Insured**;
- (B) monies payable by an **Insured** to a **Third Party** pursuant to a settlement agreement negotiated by such **Insured** with the prior written approval of the **Insurer**; and
- (C) punitive, exemplary or multiplied portion of multiple damages incurred by an **Insured**.

Enforceability of payment for punitive, exemplary and the multiplied portion of multiple damages will be governed by the applicable law that most favors coverage for such damages.

Damages do not include:

- (1) future profits, restitution, disgorgement of unjust enrichment or profits by an **Insured**;
- (2) loss, offset, restitution or return of fees, commissions, royalties, bonuses or profits of the **Insured**;
- (3) costs or expenses to comply with any order for, grant of or agreement to provide injunctive or other non-monetary relief;
- (4) taxes or loss of tax benefits;



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

- (5) **PCI Payments** or any contractual penalties, or liquidated damages, service credits or goodwill coupons but only to the extent that such penalties, damages, credits or coupons exceed the amount for which the **Insured** would have been liable in the absence of such agreement for penalties, damages, credits or coupons; or

- (6) **Fines and Penalties.**

Data Breach Response Costs means the reasonable and necessary costs for an **Expert** to:

- (A) identify and preserve relevant electronic data on the **Company Computer System**;
- (B) make notifications of such **Privacy Breach** to any data subject, **Third Party** or **Regulator** according to legal and regulatory duties;
- (C) determine the extent of any relevant indemnification obligations contained in any written contract between the **Insured** and any **Third Party**;
- (D) operate a call center for the benefit of affected data subjects;
- (E) procure credit monitoring services for the affected data subjects; or
- (F) procure identity monitoring and identity protection or restoration services or any similar service (including medical identity restoration for affected individuals) for the affected data subjects;

Data Protection Legislation means any law or regulation regulating the control or processing of personal data or information, including but not limited to the California Consumer Privacy Act, the New York SHIELD Act, the General Data Protection Regulation (Regulation EU 2016/679), or any similar applicable law or regulation and including any regulations enacted in furtherance of or pursuant to their implementation.

Data and System Recovery Costs means reasonable and necessary costs for an **Expert** to (i) restore a **Company Computer System** to the same level of functionality which existed immediately prior to such **Cyber Event**; or (ii) restore, retrieve, repair or reinstall electronic data or software.

Data and System Recovery Costs do not include any:

- (1) costs to comply with any order for, grant of or agreement to provide injunctive or other non-monetary relief;
- (2) legal costs and expenses of any type;
- (3) costs that the **Insured** would have incurred had the **Cyber Event** not occurred;
- (4) costs for the correction of incorrect manual input of electronic data;



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

- (5) costs to design, upgrade, maintain, or improve the **Company Computer System** or software to a level beyond that which existed prior to a **Cyber Event** unless such costs are less than or equal to the amount it would cost to design, upgrade, maintain, or improve the **Company Computer System** to the same or equivalent condition that existed immediately prior to such **Cyber Event**; or
- (6) internal costs or expenses of the **Insured** (including, but not limited to, labor costs and overhead); or
- (7) **Bricking Costs**.

Defense Costs mean reasonable and necessary fees, costs and expenses incurred by or on behalf of the **Insured** in relation to the investigation, defense, settlement of, or response to a **Claim** and appeal thereof. **Defense Costs** do not include any internal costs or expenses of the **Insured** (e.g. overhead, wages, salaries or other remuneration) or any **Cyber Event Costs**.

Discovered or **Discovery** means the time at which a member of **Management** first becomes aware of an event that triggers coverage under this Policy and the knowledge of such event would cause a person to reasonably believe that a **Loss** has been or is likely to be incurred, even if the exact amount or detail of the **Loss** may not be known at that time. All **Related Events** will be deemed to have been **Discovered** at the time the first such **Related Event** is **Discovered**.

Employee means any natural person employee (including part time, temporary, leased or seasonal employees), volunteer and intern, but only for work done while acting within the scope of employment.

Expert means any service provider relevant for the specific coverage under this Policy recommended or agreed by the **Insurer**, such agreement not to be unreasonably withheld or delayed.

Extended Discovery Period means the period of time stated in Item 4. of the Declarations and commencing immediately upon the expiration of the **Policy Period**.

Extra Expense means reasonable and necessary expenses incurred by the **Company** during the **Period of Restoration** to directly minimize, reduce or avoid **Loss of Profit**. **Extra Expense** does not include expenses the **Company** would have incurred had no **Business Interruption** occurred.

Financial Institution means a bank, credit union, or other licensed financial service or similar investment company at which the **Company** maintains a **Transfer Account**.

Fines and Penalties means all monetary, regulatory or administrative fines, penalties (other than criminal fines and penalties) and settlements that the **Insured** is legally liable to pay, to the extent these are insurable under the law that most favors coverage for such fines and penalties. **Fines and Penalties** does not include audit, assessment, compliance or reporting costs.

Forensic Costs means the reasonable and necessary costs for an **Expert** to analyze the **Company Computer System** to determine:

- (A) whether a **Cyber Event** has occurred;
- (B) the cause and extent of any **Cyber Event**; and
- (C) the method and means of mitigating a **Cyber Event**.



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

Fraudulent Instruction means the transfer, payment or delivery of **Money** or **Securities** by an **Insured** as a direct result of a fraudulent instruction provided by a **Third Party**, that is intended to mislead an **Insured** by misrepresenting material facts to such **Insured**.

Fraudulent Instruction will not include loss arising out of:

- (A) fraudulent instructions received by the **Insured** which are not first authenticated via a method other than the original means of request to verify the authenticity or validity of the request;
- (B) any loss, transfer, payment or delivery of monies, securities or tangible property of a **Third Party** held in escrow by the **Company**;
- (C) any actual or alleged use of credit, debit, charge, access, convenience, customer identification or other cards;
- (D) the processing of, or the failure to process, credit, check, debit, personal identification number debit, electronic benefit transfers or mobile payments for merchant accounts;
- (E) accounting or arithmetical errors or omissions, or the failure, malfunction, inadequacy or illegitimacy of any product or service;
- (F) any indirect or consequential loss of any kind; or
- (G) any liability to any **Third Party**, or any legal costs or legal expenses.

Funds Transfer Fraud means the transfer, payment or delivery of **Money** or **Securities** by a **Financial Institution** as a direct result of a fraudulent instruction provided by a **Third Party** directing such institution to transfer, pay or deliver **Money** or **Securities** from a **Transfer Account** without the **Company's** knowledge or consent.

Funds Transfer Fraud will not include any loss arising out of any:

- (A) **Cyber Deception** covered by the **Company's** financial institution bond or commercial crime policy;
- (B) fraudulent, dishonest or criminal act or omission by, or involving, any **Insured Person**;
- (C) indirect or consequential loss of any kind;
- (D) punitive, exemplary or multiplied damages of any kind or any fines, penalties or loss of any tax benefit;
- (E) liability to any **Third Party** or any legal costs or legal expenses;
- (F) theft, disappearance, destruction of, unauthorized access to, or unauthorized use of confidential information, including authorization codes or security codes;
- (G) forged, altered or fraudulent negotiable instruments, securities, documents or instructions; or
- (H) use of payment cards or information contained on such cards.

Insured means the **Company** and the **Insured Persons**.



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

Insured Person means any:

- (A) member of **Management** acting within the scope and capacity of his or her job requirements;
- (B) **Employee**;
- (C) natural person contractor of the **Company**, but only while acting within the within the scope and capacity as such and in furtherance of the **Company's** business;
- (D) **Additional Insured**, but only as respects **Claims** against such person or entity for acts, errors or omissions of the **Company**; or
- (E) spouse, civil partner, estate, heir, executor, bankruptcy administrator, or legal representative of any natural person listed in (A) or (B) above, but solely for **Loss** arising from a covered **Claim** involving such natural person listed in (A) or (B) above; or

Insurer means the entity as specified on the Declarations.

Liability Claim means a written demand for money or services, including without limitation the institution of a civil legal complaint, a demand for arbitration, or a written request to toll a statute of limitations. A **Liability Claim** does not include a **Regulatory Claim** or a **PCI Claim**.

Legal and Regulatory Advice Costs means the reasonable and necessary costs for an **Expert** to provide legal consultation or services to the **Insured**.

Loss means any **Business Interruption Loss**; **Cyber Event Costs**; **Damages**; **Data and System Recovery Costs**; **Defense Costs**; **Fines and Penalties**; **PCI Payments**; **PCI Investigation Costs**; **Ransom Payments**; **Reputation Loss**; **Supplier Interruption Loss**; and any other amounts covered under this Policy.

Loss of Profit means:

- (A) The net operating profit (before interest and tax) that the **Company** would have earned during the **Period of Restoration** had the **Business Interruption** not occurred; plus
- (B) the **Company's** usual and regular operating expenses to the extent that such operating expenses must continue during the **Period of Restoration**.

Management means any principal, chief executive officer, chief financial officer, general counsel, risk manager, chief information security officer, or the functional equivalents of any of the foregoing, of the **Policyholder**.

Media Information means any information, including words, sounds, numbers, images, video, and graphics displayed in any medium, but will not include computer software or the actual goods, products or services described or displayed therein.

Media Wrongful Act means any of the following acts committed by, or on behalf of, the **Company** in the course of creating, displaying, broadcasting, disseminating or releasing **Media Information** to the public:



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

- (A) defamation, libel, slander, product disparagement, trade libel, infliction of emotional distress or other tort related to disparagement or harm to the reputation or character of any person or entity;
- (B) a violation of the rights of privacy of an individual, including false light, intrusion upon seclusion and public disclosure of private facts;
- (C) invasion or interference with an individual's right of publicity, including commercial appropriation of name, persona, voice or likeness;
- (D) plagiarism, piracy, or misappropriation of ideas under implied contract;
- (E) improper deep-linking or framing;
- (F) false arrest, detention or imprisonment;
- (G) invasion of or interference with any right to private occupancy, including trespass, wrongful entry or eviction;
- (H) infringement of copyright;
- (I) infringement of domain name, trademark, trade name, trade dress, logo, title, metatag, or slogan, service mark or service name; or
- (J) unfair competition, if alleged in conjunction with any infringement listed in parts (H) or (I) above.

Merchant Services Agreement means any written agreement between the **Company** and a financial institution, credit/debit card company, credit/debit card processor or independent services operator that sets out the terms and conditions relating to the **Company's** acceptance of payments or donations via payment card.

Money means:

- (A) currency (other than digital currencies), coins, bank notes and any other medium of exchange in current use and authorized by a domestic or foreign government as a part of its currency; and
- (B) traveler's checks, register checks, and money orders held for sale to the public.

PCI Claim means any written demand, suit or proceeding brought under a **Merchant Services Agreement**.

PCI Investigation Costs means:

- (A) reasonable and necessary costs for a computer security **Expert** to demonstrate any **Company's** ability to comply with a **Merchant Services Agreement** and, in such **Company's** discretion, to provide advice and oversight in connection with an investigation conducted by a PCI forensic investigator; and
- (B) reasonable and necessary costs for a PCI forensic investigator that is approved by the PCI Security Standards Council and retained by the **Company** in order to comply with the terms of a **Merchant Services Agreement** to investigate the existence and extent of an actual or suspected compromise of credit card data.

PCI Payments means sums of money assessed against the **Insured** as a penalty or fine pursuant to the terms of a **Merchant Service Agreement**.

PCI Wrongful Act means an actual or alleged breach of the **Insured's** obligations under the Payment Card Industry Data Security Standards (PCI-DSS) or similar payment industry standard.



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

Period of Restoration means the period listed in Item 7. of the Declarations that begins when the **Business Interruption** first occurs.

Personally Identifiable Information means any personal data controlled or processed by the **Insured** that is subject to protection by any **Data Protection Legislation**.

Policyholder means the entity listed in Item 1. of the Declarations.

Policy Period means the period of time listed in Item 2. of the Declarations.

Privacy Breach means any actual, alleged or suspected:

- (A) loss, theft, or unauthorized or negligent disclosure, dissemination, disposal, or loss of operational control of any **Personally Identifiable Information** or **Confidential Information**;
- (B) unauthorized access to or use of **Personally Identifiable Information** or **Confidential Information** in the **Company Computer System**; or
- (C) violation of any **Data Protection Legislation**.

Public Relations Costs means the reasonable and necessary costs for an **Expert** incurred to prevent or reduce the effects of negative publicity that the **Insured** reasonably believes arises from an event triggering the coverage and covered under this Policy.

Ransom Payment means any:

- (A) reasonable and necessary costs incurred for an **Expert** to evaluate and respond to a **Ransom Threat**; and
 - (B) monies (including digital currencies) paid by the **Company** in order to resolve or terminate a **Ransom Threat**;
- provided that the **Company** takes reasonable steps to mitigate any **Ransom Threat**.

Ransom Threat means a credible threat or connected series of threats, made by someone other than a member of **Management**, to:

- (A) execute any **Cyber Attack**; or
- (B) disseminate, divulge, or improperly utilize any private information, **Personally Identifiable Information** or **Confidential Information** stored in the **Company Computer System**;

unless monies (including digital currencies) are received from or on behalf of the **Company**.

Regulator means any official or appropriate public authority while acting in its regulatory capacity to enforce **Data Protection Legislation** or any law or regulation regulating the safeguard of any **Computer System**.

Regulatory Claim means any:

- (A) written request for information;
- (B) written request to toll a statute of limitations;



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

- (C) written civil investigative demand;
- (D) institution of an investigation or audit; or
- (E) institution of a civil proceeding;

by or on behalf a **Regulator**.

Related Events means any and all events triggering the specific coverage under this Policy arising out of, based upon, attributable to or in connection with related or repeated acts, omissions or events or the same originating cause or source. Multiple **Losses** arising from **Related Events** will be considered a single **Loss** for the purposes of this Policy.

Reputation Event means publication by someone other than an **Insured** of previously non-public information specifically concerning a **Cyber Event** or **Ransom Threat**.

Reputation Loss means:

- (A) The net operating profit (before interest and tax) that the **Company** would have earned during the **Reputation Period** had the **Reputation Event** not occurred; plus
- (B) the **Company's** usual and regular operating expenses to the extent that such operating expenses must continue during the **Reputation Period**.

Reputation Loss will not include any:

- (1) loss resulting from the decision of the **Company** to suspend, cancel or lapse of any lease, contract, license or orders;
- (2) liabilities to any **Third Party**;
- (3) legal expenses or costs;
- (4) consequential loss or loss incurred as a result of unfavorable business conditions;
- (5) **Data and System Recovery Costs**;
- (6) loss resulting from a complete or partial interruption or any slowdown of the operations of the **Company** for any period of time; or
- (7) **Ransom Payments**.

Reputation Period means the period beginning on the date the **Reputation Event** occurs, and ends after the earlier of:

- (A) 180 days; or
- (B) the date that gross revenues are restored to the level they would have been but for the **Reputation Event**.

Retention means the applicable amount(s) listed in Item 7. of the Declarations.



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

Rewards means the reasonable amount paid by the **Company**, up to \$50,000, to an informant for information not otherwise available that leads to the arrest and conviction of a person responsible for a **Cyber Event** (other than the informant).

Securities means negotiable or nonnegotiable instruments or contracts representing either **Money** or property. **Securities** does not include **Money**.

Subsidiary means any entity that the **Company**, either directly or indirectly:

- (A) controls the composition of the board of directors;
- (B) holds more than 50% of the voting shares; or
- (C) holds more than 50% of the issued share capital.

For any **Subsidiary** or any **Insured Person** thereof, cover under this Policy will only apply to an incident or event that occurs and is **Discovered**, while such entity is a **Subsidiary**.

Supplier means any **Third Party** that provides products or services to the **Company** pursuant to a written contract.

Supplier Cyber Attack means an intrusion into or unauthorized access or use of any **Computer System** operated by a **Supplier** or, any unauthorized modification, destruction, deletion, distribution or transmission or copying of, or rendering inaccessible, electronic data or software or consumption of computer resources of such **Computer System**, by any means, including, but not limited to, denial of service attacks.

Supplier Failure means any unintentional and unplanned interruption, other than an interruption caused by a **Cyber Attack**, of any **Computer System** operated solely by a **Supplier**.

Supplier Interruption Event means any **Supplier Cyber Attack** or **Supplier Failure**.

Supplier Interruption Loss means any **Loss of Profit** sustained by the **Company** and any **Extra Expense**.

Supplier Interruption Loss will not include any:

- (A) loss resulting from the suspension, cancellation, or lapse of any lease, contract, license or orders;
- (B) liabilities to any third parties;
- (C) legal expenses or costs;
- (D) consequential loss;
- (E) **Data and System Recovery Costs**; or
- (F) **Business Interruption Loss**.

Telephone Fraud means toll and line charges incurred by an **Insured** solely as a result of a fraudulent infiltration and manipulation of a **Company's** telephone system from a remote location to gain access to outbound long-distance telephone service.

Third Party means any natural or legal person except any **Insured**.

Transfer Account means an account maintained by the **Company** at a **Financial Institution** from which the **Company** can initiate the transfer, payment or delivery of **Money** or **Securities** to a **Third Party**.



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

Unplanned Failure means any unintentional and unplanned interruption of a **Company Computer System**, other than an interruption caused by a **Cyber Attack**.

Voluntary Notification Costs means the reasonable and necessary costs incurred by the **Insured** to make voluntary notifications of any actual, alleged or suspected **Privacy Breach** to any data subject, **Third Party**, or **Regulator**, provided the **Insured** reasonably believes such voluntary notification will mitigate other **Loss** covered under this Policy.

Waiting Period means the period as specified in Item 7. of the Declarations, starting at the beginning of the **Business Interruption**.

EXCLUSIONS

No coverage is available under this Policy with respect to any **Loss**, or any other amounts arising out of:

Bodily Injury

any actual or alleged physical injury, sickness, disease or death of any natural person, including any mental anguish or emotional distress resulting from such physical injury, sickness, disease or death.

Property Damage

any actual or alleged damage to or destruction of any tangible property, including loss of use thereof; provided that this exclusion will not apply to **Data and System Recovery Costs** or **Bricking Costs**. Electronic data and software are not considered tangible property for purposes of this exclusion.

Company Claims

any **Claim** brought by, on behalf of, or at the instigation of the **Company** or member of **Management**.

Dishonest or Improper Conduct

any deliberately criminal, fraudulent, dishonest, or malicious act or omission by any member of **Management**. However, the **Insurer** will advance **Defense Costs** unless and until there is a final non-appealable decision of a court, arbitration tribunal or **Regulator** in the underlying proceeding establishing such deliberately criminal, fraudulent, dishonest, or malicious act or omission, at which time the **Policyholder** will promptly repay to the **Insurer** any amount paid to or on behalf of such member of **Management** under this **Policy**.

For the purposes of this exclusion, no conduct, act or omission of one **Insured** will be imputed to any other natural person **Insured** and only the knowledge possessed by, and any conduct, act or omission of, any past or present member of **Management** will be imputed to the **Company**.

Legislative

any actual, alleged or suspected violations of:

- (A) the Employment Retirement Income Securities Act of 1974;
- (B) the Racketeer Influenced and Corrupt Organization Act of 1961;
- (C) the False Claims Act (31 U.S.C. §§ 3729-3733); or



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

- (D) statutes, ordinances, regulations or laws regarding or relating to unsolicited marketing activities, including but not limited to Telephone Consumer Protection Act of 1991 (TCPA) and Controlling the Assault of Non-Solicited Pornography and Marketing Act of 2003 (CAN-SPAM Act);
- (E) the Americans with Disabilities Act of 1990 (ADA); or
- (F) the Fair Credit Reporting Act (FCRA);
- (G) statutes, ordinances, regulations or laws regarding or relating to antitrust violations, restraint of trade, price fixing, or unfair competition (except as provided in the Media Liability insuring agreement), including but not limited to the Sherman Antitrust Act, the Clayton Act, the Robinson-Patman Act;

and including (i) any rules or regulations promulgated thereunder, and (ii) any similar statutes, ordinances or regulations.

Pollution

or in any way involving any discharge, dispersal, seepage, migration, release or escape of any:

- (A) solid, liquid, gaseous, biological, radiological or thermal irritant, hazardous substance or contaminant, including but not limited to asbestos or asbestos products, smoke, fibers, mold, spores, fungi, germs, vapor, dust, soot, fumes, acids, alkalis, chemicals, radiation and waste. Waste includes but is not limited to materials to be recycled, reconditioned or reclaimed, and nuclear materials;
- (B) electromagnetism, or electromagnetic energy, radiation, or fields or force; or nuclear or other radiation.

Prior Claims and Knowledge

any fact, event, or circumstance, likely to give rise to a **Claim** or **Loss** of which a member of **Management** was aware (including claims, incidents or circumstances noticed under other insurance), or after reasonable inquiry should have been aware, prior to the **Continuity Date**.

Trade Secrets and Intellectual Property

any actual or alleged theft, misappropriation, plagiarism, misuse, or infringement of any rights with respect to patents, patent licenses, or the registration of patents.

Government Actions

a **Claim** brought by or on behalf of any state, federal, local or foreign governmental entity, in such entity's regulatory or official capacity; but this exclusion will not apply to the Regulatory Fines & Penalties insuring agreement.

Trading

any actual or alleged trading losses, trading liabilities or change in value of accounts; any loss, transfer or theft of monies, securities or tangible property of the **Insured** or others; or the monetary value of any transactions or electronic fund transfers by or on behalf of the **Insured** which is lost, diminished, or damaged during transfer from, into or between accounts; provided, however, that this exclusion will not apply to coverage provided under the Cyber Deception insuring agreement.



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

Sale or Ownership of Securities

- (A) the ownership, sale, or the offer to sell or purchase stock or **Securities**; or
- (B) an actual or alleged violation of a securities law or regulation.

Discrimination and Employment

any actual or alleged discrimination or any refusal to employ any person, or any employer-employee relations, policies, practices, acts or omissions, or misconduct with respect to **Employees**.

War, Looting and Governmental Acts

any war, invasion, act of foreign enemy, hostile operations (whether war has been declared or not), civil war, rebellion, revolution, insurrection, riot or civil commotion assuming the proportion of or amounting to a popular uprising, military or usurped power or martial law, looting; provided, however this exclusion will not apply to **Cyber Terrorism**.

Confiscation

any expropriation, nationalization, confiscation, requisition or seizure of property or data by order of any governmental or public authority.

Natural Perils and Physical Events

any fire, smoke, explosion, lightning, wind, flood, earthquake, windstorm, volcanic eruption, tidal wave, landslide, hail, act of God, or other physical event, however caused.

Failure of Infrastructure

any failure or malfunction of satellites or of power, utility, mechanical or telecommunications infrastructure or services that are not under the **Company's** direct operational control.

Improvement of Company Computer System

- (A) any costs or expenses that the **Insured** incurs to identify or remediate software program errors or vulnerabilities;
- (B) costs to establish, implement, maintain, improve or remediate security or privacy practices, procedures, programs or policies; or
- (C) any costs to update, replace, restore, assemble, reproduce, recollect or enhance data or a **Company Computer System** to a level beyond that which existed prior to a **Cyber Event, Business Interruption Event, Supplier Interruption Event or Ransom Threat**; provided that this exclusion will not apply where such costs are less than or equal to the amount it would cost to update, replace, restore, assemble, reproduce, recollect or enhance data or **Company Computer Systems** to the same or equivalent condition that existed immediately prior to a **Cyber Attack** under the Data and Systems Recovery insuring agreement.

EXCLUSIONS APPLICABLE TO MEDIA

Solely with respect to the Media Liability insuring agreement, no coverage will be available under this Policy with respect to any **Loss**, or any other amounts arising out of:

Contractual Liability



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

Any contractual liability; provided that this exclusion will not apply to a **Claim** for misappropriation of ideas under implied contract.

Recall

any costs or expenses incurred or to be incurred by the **Insured** or others for the reprinting, reposting, recall, removal or disposal of any **Media Information** or any other content, media or information or products.

Licensing

any (i) actual or alleged licensing fee or royalty payment including, but not limited to, any obligation to pay such fees or royalty payments; or (ii) **Claim** brought by or on behalf of any intellectual property licensing bodies or organizations.

Description of Goods and Services

the actual or alleged inaccurate, inadequate or incomplete description of the price of goods, products or services, cost guarantees, cost representations, price estimates, or the failure of any goods or services to conform with any represented quality or performance.

Promotions

any actual or alleged promotional game, lottery or other game of chance; or the value of discounts, coupons, prizes, awards or other incentives offered to the **Insured's** customers or clients.

Joint Ownership Disputes

disputes regarding ownership of rights in **Media Information** or services provided by an independent contractor or venture partner.

DUTIES OF THE INSURED AND OTHER CONDITIONS

Notification

- (A) Upon **Discovery** of an incident giving rise to Coverage For The Insured's Direct Loss, the **Insured** will give written notice thereof to the **Insurer** as soon as reasonably practicable, but in any event not later than 60 days after the end of the **Policy Period**.
- (B) With regard to a **Claim** giving rise to Coverage For Claims Made Against The Insured, the **Insured** will give written notice thereof to the **Insurer** as soon as reasonably practicable after a member of **Management** first becomes aware of such **Claim**, but in no event will the **Insured** give notice of a **Claim** later than (i) 60 days after the end of the **Policy Period**, or (ii) the **Extended Discovery Period** (if applicable).
- (C) If the **Insured** becomes aware of any circumstance that is reasonably likely to give rise to a **Claim**, the **Insured** may give written notice thereof to the **Insurer** during the **Policy Period**.

The notification of the circumstances must be made in writing during the **Policy Period** and must include:

- (1) the reasons for expecting such circumstances to give rise to a **Claim**, including full particulars as to the nature and date of the actual or alleged **Cyber Event**, **PCI Wrongful Act**, or **Media Wrongful Act**;



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

- (2) the date and manner by which the **Insured** first became aware of such circumstances; and
- (3) the identity of any potential **Insureds** and claimants.

All notifications and all communications under this Policy must be in writing to the address listed in Item 6. of the Declarations.

If during the **Policy Period** the **Insured** provides notice of a circumstance in accordance with the requirements of (C) above, then any future **Claim** arising out of such notified circumstance will be deemed made at the time the **Insurer** first received notice of the circumstance.

Defense

The **Insurer** has the right and duty to defend any **Claim** made against any **Insured**. Defense counsel will be mutually agreed by the **Insured** and the **Insurer** but, in the absence of such agreement, the **Insurer's** decision will be final.

The **Insurer** will pay actual loss of salary and reasonable expenses resulting from the attendance by an **Insured** at any mediation meetings, arbitration proceedings, hearings, depositions, or trials relating to the defense of any **Claim**, subject to a maximum of \$500 per day and \$5,000 in the aggregate, which amounts will be part of and not in addition to the **Aggregate Limit of Liability**.

Consent

The **Insured** must obtain the **Insurer's** written consent (such consent not to be unreasonably withheld or delayed) prior to:

- (A) settling any **Claim** or otherwise assuming any contractual obligation, voluntarily making any payment, or admitting liability with regard to any **Claim**; or
- (B) incurring any **Ransom Payment, Cyber Event Costs, Data and System Recovery Costs** or **Defense Costs** unless it is not reasonably possible to obtain the prior consent of the **Insurer**, in which case the **Insured** may incur reasonable and necessary **Ransom Payment, Cyber Event Costs, Data and System Recovery Costs** or **Defense Costs**.

Cooperation

The **Insured** will take all reasonable steps to reduce or minimize **Loss** and will provide to the **Insurer** all such information, cooperation and assistance as reasonably required. Upon request by the **Insurer**, the **Insured** will also submit to the **Insurer** a written proof of **Loss** explaining in reasonable detail the circumstances and calculation of such **Loss**.

Subrogation and Recoveries

The **Insurer** will be subrogated to all of the **Insured's** available rights of recovery for all payments made by the **Insurer** under this Policy. The **Company** and all **Insureds** will do everything necessary to secure any such recovery rights for the **Insurer**, including the execution of any documents necessary to enable the **Insurer** effectively to bring a recovery action or suit in the name of the **Insurer, Company** or **Insured** (as applicable), whether such acts become necessary before or after payment by the **Insurer**.



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

If an **Insured** has waived its right to subrogate against a **Third Party** through written agreement made before an incident or event giving rise to a **Claim** or **Loss** has occurred, then the **Insurer** waives its rights to subrogation against such **Third Party**. Any recovery received will first be applied against any payment made by the **Insurer** with any balance remaining thereafter being remitted to or retained by the **Company** or **Insured**. Recovery by the **Insurer** from reinsurance will not be deemed a recovery hereunder.

Settlement of Claims

If the **Insured** refuses to consent to settle a **Claim** as recommended by the **Insurer**, the **Insurer's** liability for such **Claim** will not exceed:

- (A) the amount of **Defense Costs** incurred prior to the date of such recommendation; plus
- (B) 60% of all future **Defense Costs** incurred after the date such settlement or compromise was recommended to the **Insured** plus 60% of any **Damages** above the amount for which the **Claim** could have been resolved.

LIMIT OF LIABILITY AND RETENTION

Limit of Liability

The **Insurer's** liability to pay or indemnify under this Policy for each and every **Loss** and for all **Loss** in the aggregate will not exceed the **Aggregate Limit of Liability**. Any amounts paid by the **Insurer** under this Policy will erode the **Aggregate Limit of Liability**.

Each limit of coverage specified in the Declarations or elsewhere in this Policy is the maximum amount the **Insurer** will pay for the coverage to which it applies and is part of, and not in addition to, the **Aggregate Limit of Liability**.

Retention

Coverage under this Policy will apply only after the **Insured** has paid the applicable **Retention**. In the event of a **Loss**, the **Insurer** will be responsible only for the amount of **Loss** that is in excess of the applicable **Retention**.

If more than one **Retention** applies to a **Related Event**, the **Insured** is responsible to pay an amount equal to the largest of such applicable **Retention** amounts.

GENERAL PROVISIONS

Extended Discovery Period

In the event of cancellation or non-renewal of this Policy, by either the **Company** or **Insurer** (for reasons other than for non-payment of the premium), the **Company** will be entitled to purchase an **Extended Discovery Period** by making a request in writing not later than 60 days after expiration of the **Policy Period** and paying the additional premium listed in Item 4. of the Declarations for such **Extended Discovery Period**. The purchase of the **Extended Discovery Period** will in no way increase the **Aggregate Limit of Liability**. Such additional premium will be deemed fully earned and not eligible for refund or repayment. The **Extended Discovery Period** will provide for extended coverage under this **Policy** only for **Claims** (i) first made against an **Insured** during the **Extended Discovery Period**, and (ii) arising out of a **Cyber Event** or **Media Wrongful Act** occurring before the end of the **Policy Period**.

New Subsidiaries

If during the **Policy Period** any **Company** creates or acquires a new entity it will automatically be covered under this **Policy** as a **Subsidiary**, provided that such entity does not have an annual revenue exceeding fifteen percent (15%) of the consolidated net annual revenue of the **Policyholder** as of the beginning of the **Policy Period**.



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

Change in Control

If during the **Policy Period** an **Acquisition** occurs, the **Insurer** will only be liable to make a payment under this **Policy** in relation to any **Loss** or **Claim** based upon or attributable to any incident or event that occurred prior to the date upon which the **Acquisition** is legally effective in the jurisdiction in which it occurs.

The **Company** will give the **Insurer** written notice of the **Acquisition** as soon as practicable after the **Company** first becomes aware of the **Acquisition**.

Acquisition means any of the following:

- (A) the **Company's** merger with, or consolidation into, any other entity;
- (B) the sale of all or the majority of the **Company's** assets to any person or entity acting alone or in concert; or
- (C) any person or entity acting alone or in concert acquiring ownership or control or assuming control pursuant to written agreement with other shareholders or similar security holders of more than 50% of the outstanding securities representing the present right to vote for the election of the board of directors of the **Company** or assuming the right to appoint or remove the majority of the board of directors (or equivalent position) of the **Company**.

Bankruptcy

If a receiver, liquidator, administrator or equivalent under the laws of any jurisdiction is appointed to any **Insured** during the **Policy Period**, the **Insurer** will only be liable to make any payment under this Policy in relation to any **Loss** or **Claim** based upon or attributable to any incident or event that occurred prior to the effective date of such appointment.

Policy Administration

Unless expressly stated otherwise in this Policy, the **Policyholder** will act on behalf of itself and each and every **Insured** with respect to all matters relevant to this **Policy**. The payment of any **Loss** and or any other amounts payable under this Policy to the **Company** will fully release the **Insurer** with respect to such **Loss** and all other amounts.

Premium Payment and Termination

- (A) The **Policyholder** may cancel this Policy by mailing to the **Insurer** advance written notice of cancellation.
- (B) The **Insurer** may cancel this Policy by mailing to the **Policyholder** written notice stating when such cancellation will be effective. Such date of cancellation will not be less than 60 days (or 10 days for cancellation due to non-payment of premium) after the date of notice.
- (C) If this Policy is cancelled in accordance with (A) or (B) above, the earned premium will be computed pro rata; but the premium will be deemed fully earned if any **Claim**, or any circumstance that could be the basis of a **Claim** or **Loss**, is reported to the **Insurer** on or before the date of cancellation. Payment or tender of unearned premium is not a condition of cancellation.

Other Insurance / Indemnification

Coverage under this Policy is provided only as excess over any other more specific valid and collectible insurance, including any self-insured retention or deductible thereof unless such other insurance is written only as specific excess insurance over this Policy and the **Aggregate Limit of Liability**.

Interpretation



Associated Industries Insurance Company, Inc.
800 Superior Avenue East, 21st Floor
Cleveland, OH 44114

The descriptions in the headings and titles of this Policy are solely for reference and convenience and do not lend any meaning to this Policy.

Rights of Third Parties

Unless otherwise mandated by law, this Policy does not confer a directly enforceable benefit or right to enforce any term of this contract upon any **Third Party**.

Assignment

The **Insured** will not be entitled to assign this Policy nor any interest or right under the Policy without the **Insurer's** written consent.

Sanctions/Embargoes

The **Insurer** will not be deemed to provide cover and the **Insurer** will not be liable to pay any **Loss** or provide any benefit hereunder to the extent that the provision of such cover, payment of such **Loss** or provision of such benefit would expose the **Insurer** to any sanction, prohibition or restriction under United Nations resolutions or the trade or economic sanctions, laws or regulations of the United States.

Territory

Coverage under this **Policy** applies anywhere in the world unless such coverage is not legally permitted.

Choice of Law

Any dispute concerning the interpretation of this Policy will be governed by the laws of the state designated in the Declarations.

Service of Suit

Service of process for any suit instituted against the **Insurer** concerning this Policy may be made upon the Superintendent, Commissioner, or Director of Insurance or other person specified for that purpose in the statute or his/her successor or successors in office as their true and lawful attorney upon whom may be served any lawful process in any action, suit, or proceeding instituted by or on behalf of the **Insured** or any beneficiary hereunder and arising out of this Policy.

The **Insurer** has designated:
Mr. Stephen Ungar, Secretary
Associated Industries Insurance Company
59 Maiden Lane, 43rd Floor
New York, NY 10038

as the person(s)/organization to whom the Superintendent, Commissioner, or Director of Insurance or other specified person is authorized to mail such process or a true copy thereof, in compliance with the applicable statutes governing said service of process in the state or jurisdiction in which a cause of action under this Policy arises.

THIS ENDORSEMENT IS ATTACHED TO AND MADE PART OF "YOUR" POLICY.

CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM and DISCLOSURE PURSUANT TO TERRORISM RISK INSURANCE ACT

SCHEDULE

Terrorism Premium (Certified Acts)	\$ 0
This premium is the total Certified Acts premium attributable to this Policy.	
Federal share of terrorism losses [enter percentage] <u>80 %</u> Year: <u>2025</u> (Refer to Paragraph B. in this endorsement.)	
Federal share of terrorism losses [enter percentage] <u>80 %</u> Year: <u>2026</u> (Refer to Paragraph B. in this endorsement.)	

A. Disclosure Of Premium

In accordance with the federal Terrorism Risk Insurance Act, "we" are required to provide "you" with a notice disclosing the portion of "your" premium, if any, attributable to coverage for terrorist acts certified under that Act. The portion of "your" premium attributable to such coverage is shown in the Schedule of this endorsement.

B. Disclosure Of Federal Participation In Payment Of Terrorism Losses

The United States Government, Department of the Treasury, will pay a share of terrorism losses insured under the federal program. The federal share equals a percentage (as shown in the Schedule of this endorsement or in the policy Declarations) of that portion of the amount of such insured losses that exceeds the applicable insurer retention. However, if aggregate insured losses attributable to terrorist acts certified under the Terrorism Risk Insurance Act exceed \$100 billion in a calendar year, the Treasury shall not make any payment for any portion of the amount of such losses that exceeds \$100 billion.

C. Cap On Insurer Participation In Payment Of Terrorism Losses

If aggregate insured losses attributable to terrorist acts certified under the Terrorism Risk Insurance Act exceed \$100 billion in a calendar year and "we" have met "our" insurer deductible under the Terrorism Risk Insurance Act, "we" shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

D. "Certified Act of Terrorism" means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the Act, to be an act of terrorism pursuant to such act. The criteria contained in the Act for a "Certified Act of Terrorism" include the following:

1. The act resulted in insured losses in excess of \$5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and
2. The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

E. For the purpose of this endorsement the following definitions are added:

1. the term "we" and "our" refers to the Insurance Company providing coverage.
2. the term "you" and "your" refers to the insured entity named in the Declarations Page.

F. The inapplicability or omission of a terrorism exclusion, does not serve to create coverage for any "loss" (as defined in the applicable coverage) that is otherwise excluded under the coverage specified above."

NUCLEAR INCIDENT EXCLUSION CLAUSE - LIABILITY - REINSURANCE - U.S.A.

- (1) This Contract does not cover any loss or liability accruing to the Company as a member of, or subscriber to, any association of insurers or reinsurers formed for the purpose of covering nuclear energy risks or as a direct or indirect reinsurer of any such member, subscriber or association.
- (2) Without in any way restricting the operation of paragraph (1) of this Clause it is understood and agreed that for all purposes of this Contract all the original policies of the Company (new, renewal and replacement) of the classes specified in Clause II of this paragraph (2) from the time specified in Clause III in this paragraph (2) shall be deemed to include the following provision (specified as the Limited Exclusion Provision):

Limited Exclusion Provision.*

- I. It is agreed that the policy does not apply under any liability coverage,

to: *{injury, sickness, disease, death or destruction*
{bodily injury or property damage

with respect to which an insured under the policy is also an insured under a nuclear energy liability policy issued by Nuclear Energy Liability Insurance Association, Mutual Atomic Energy Liability Underwriters or Nuclear Insurance Association of Canada, or would be an insured under any such policy but for its termination upon exhaustion of its limit of liability.

- II. Family Automobile Policies (liability only), Special Automobile Policies (private passenger automobiles, liability only), Farmers Comprehensive Personal Liability Policies (liability only), Comprehensive Personal Liability Policies (liability only) or policies of a similar nature; and the liability portion of combination forms related to the four classes of policies stated above, such as the Comprehensive Dwelling Policy and the applicable types of Homeowners Policies.
- III. The inception dates and thereafter of all original policies as described in II above, whether new, renewal or replacement, being policies which either
 - (a) Become effective on or after 1st May, 1960, or
 - (b) Become effective before that date and contain the Limited Exclusion Provision set out above;

provided this paragraph (2) shall not be applicable to Family Automobile Policies, Special Automobile Policies, or policies or combination policies of a similar nature, issued by the Company on New York risks, until 90 days following approval of the Limited Exclusion Provision by the Governmental Authority having jurisdiction thereof.

- (3) Except for those classes of policies specified in Clause II of paragraph (2) and without in any way restricting the operation of paragraph (1) of this Clause, it is understood and agreed that for all purposes of this Contract the original liability policies of the Company (new, renewal and replacement) affording the following coverages:

Owners, Landlords and Tenants Liability, Contractual Liability, Elevator Liability, Owners or Contractors (including railroad) Protective Liability, Manufacturers and Contractors Liability, Product Liability, Professional and Malpractice Liability, Storekeepers Liability, Garage Liability, Automobile Liability (including Massachusetts Motor Vehicle or Garage Liability)

shall be deemed to include, with respect to such coverages, from the time specified in Clause V of this paragraph (3), the following provision (specified as the Broad Exclusion Provision):

Broad Exclusion Provision.*

It is agreed that the policy does not apply:

- I. Under any Liability Coverage, to *{injury, sickness, disease, death or destruction*
{bodily injury or property damage
 - (a) With respect to which an insured under the policy is also an insured under a nuclear energy liability policy issued by Nuclear Energy Liability Insurance Association, Mutual Atomic Energy Liability Underwriters or Nuclear Insurance Association of Canada, or would be an insured under any such policy but for its termination upon exhaustion of its limit of liability; or
 - (b) Resulting from the hazardous properties of nuclear material and with respect to which (1) any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954, or any law amendatory thereof, or (2) the insured is, or had this policy not been issued would be, entitled to indemnity from the United States of America, or any agency thereof, under any agreement entered into by the United States of America, or any agency thereof, with any person or organization.
- II. Under any Medical Payments Coverage, or under any Supplementary Payments Provision relating to: *{immediate medical or surgical relief,*

{first aid,
to expenses incurred with respect to {bodily injury, sickness, disease or death
{bodily injury
resulting from the hazardous properties of nuclear material and arising out of the operation of a nuclear facility by any person or organization.

III. Under any Liability Coverage, to {injury, sickness, disease, death or destruction
{bodily injury or property damage
resulting from the hazardous properties of nuclear material, if

- (a) The nuclear material (1) is at any nuclear facility owned by, or operated by or on behalf of, an insured or (2) has been discharged or dispersed therefrom;
- (b) The nuclear material is contained in spent fuel or waste at any time possessed, handled, used, processed, stored, transported or disposed of by or on behalf of an insured; or
- (c) The {injury, sickness, disease, death or destruction
{bodily injury or property damage
arises out of the furnishing by an insured of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any nuclear facility, but if such facility is located within the United States of America, its territories or possessions or Canada, this exclusion (c) applies only to
{injury to or destruction of property at such nuclear facility,
{property damage to such nuclear facility and any property thereat.

IV. As used in this endorsement:

“**hazardous properties**” include radioactive, toxic or explosive properties; “**nuclear material**” means source material, special nuclear material or byproduct material; “**source material**”, “**special nuclear material**”, and “**byproduct material**” have the meanings given them in the Atomic Energy Act of 1954 or in any law amendatory thereof; “**spent fuel**” means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a nuclear reactor; “**waste**” means any waste material (1) containing byproduct material other than the tailings or wastes produced by the extraction or concentration of uranium or thorium from any ore processed primarily for its source material content and (2) resulting from the operation by any person or organization of any nuclear facility included under the first two paragraphs of the definition of nuclear facility; “**nuclear facility**” means

- (a) Any nuclear reactor,
 - (b) Any equipment or device designed or used for (1) separating the isotopes of uranium or plutonium, (2) processing or utilizing spent fuel, or (3) handling, processing or packaging waste,
 - (c) Any equipment or device used for the processing, fabricating or alloying of special nuclear material if at any time the total amount of such material in the custody of the insured at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235,
 - (d) Any structure, basin, excavation, premises or place prepared or used for the storage or disposal of waste,
- and includes the site on which any of the foregoing is located, all operations conducted on such site and all premises used for such operations; “**nuclear reactor**” means any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of fissionable material;

{With respect to injury to or destruction of property, the word “injury” or “destruction,”
{includes all forms of radioactive contamination of property.
{“property damage” includes all forms of radioactive contamination of property.

V. The inception dates and thereafter of all original policies affording coverages specified in this paragraph (3), whether new, renewal or replacement, being policies which become effective on or after 1st May, 1960, provided this paragraph (3) shall not be applicable to

- (i) Garage and Automobile Policies issued by the Company on New York risks, or
- (ii) Statutory liability insurance required under Chapter 90, General Laws of Massachusetts,

until 90 days following approval of the Broad Exclusion Provision by the Governmental Authority having jurisdiction thereof.

- (4) Without in any way restricting the operation of paragraph (1) of this Clause, it is understood and agreed that paragraphs (2) and (3) above are not applicable to original liability policies of the Company in Canada and that with respect to such policies this Clause shall be deemed to include the Nuclear Energy Liability Exclusion Provisions adopted by the Canadian Underwriters’ Association or the Independent Insurance Conference of Canada.

***NOTE. The words printed in italics in the Limited Exclusion Provision and in the Broad Exclusion Provision shall apply only in relation to original liability policies which include a Limited Exclusion Provision or a Broad Exclusion Provision containing those words.**

NOTES:

Wherever used herein the terms:

“Company”	shall be understood to mean “Company,” “Reinsured,” “Reassured” or whatever other term is used in the attached reinsurance document to designate the reinsured company or companies.
“Agreement”	shall be understood to mean “Agreement,” “Contract,” “Policy” or whatever other term is used to designate the attached reinsurance document.
“Reinsurers”	shall be understood to mean “Reinsurers,” “Underwriters” or whatever other term is used in the attached reinsurance document to designate the reinsurer or reinsurers.

TX SURPLUS LINES ENDORSEMENT

This insurance contract is with an insurer not licensed to transact insurance in this state and is issued and delivered as surplus line coverage under the Texas insurance statutes. The Texas Department of Insurance does not audit the finances or review the solvency of the surplus lines insurer providing this coverage, and the insurer is not a member of the property and casualty insurance guaranty association created under Chapter 462, Insurance Code. Chapter 225, Insurance Code, requires payment of 4.85 percent tax on gross premium.

This endorsement is attached to and forms a part of Policy No. ACL1268445 effective 10/31/2025 .

AMEND DEFINITION OF PRIVACY BREACH – WRONGFUL COLLECTION

In consideration of the premium paid for this Policy, it is hereby understood and agreed that the definition of **Privacy Breach** is deleted in its entirety and replaced with the following:

Privacy Breach means any actual, alleged or suspected:

- (A) loss, theft, or unauthorized or negligent disclosure, dissemination, disposal, or loss of operational control of any **Personally Identifiable Information** or **Confidential Information**;
- (B) unauthorized access to or use of **Personally Identifiable Information** or **Confidential Information** in the **Company Computer System**; or
- (C) violation of any **Data Protection Legislation**, including the storage, collection, use or disclosure of **Personally Identifiable Information** or **Confidential Information** in violation of any **Data Protection Legislation**.

All other terms and conditions of this Policy remain unchanged.

This endorsement is attached to and forms a part of Policy No. ACL1268445 effective 10/31/2025 .

RT AMENDATORY ENDORSEMENT

In consideration of the premium paid for this Policy, it is hereby understood and agreed that:

1. Item 4. of the Declarations is deleted in its entirety and replaced with the following:

ITEM 4. EXTENDED DISCOVERY PERIOD

Extended Discovery Period:	Extended Discovery Period Premium:
12 Months	100% of the annual policy premium
24 Months	150% of the annual policy premium
36 Months	175% of the annual policy premium

2. Business Interruption Period of Restoration and Business Interruption from Supplier Period of Restoration in Item 7. of the Declarations are deleted and replaced with the following:

Business Interruption Period of Restoration:	210 Days
Business Interruption from Supplier Period of Restoration:	210 Days

3. **Data and System Recovery** under COVERAGE FOR THE INSURED'S DIRECT LOSS is deleted in its entirety and replaced with the following:

Data and System Recovery

Data and System Recovery Costs and **Bricking Costs** incurred by the **Company** directly resulting from a **Cyber Event** or **Unplanned Failure**.

4. The following **Definitions** are deleted in their entirety and replaced with the following:

Company Computer System means any **Computer System** under the operation or control of, and either owned or leased by, a **Company**, including those components of a cloud-based **Computer System** operated on behalf of a **Company** pursuant to a written agreement.

Computer System means any hardware, software, and firmware (including wireless or mobile devices; and computers, hardware, and software which are part of an industrial control system, including a supervisory control and data acquisition (SCADA) system) used to provide or host computer application services to:

- (A) create, manage, automate, integrate, interpret, control, process, eliminate, modify, store, retrieve, secure or exchange information; or
- (B) create, manage, steer, modify, store, retrieve, secure, analyze, control, or monitor industrial operations.

Damages means any of the following, incurred as a result of a **Claim**:

- (A) amounts that an **Insured** is legally liable to pay to a **Third Party** in respect of judgments or arbitral awards rendered against an **Insured**, including any award of prejudgment or post-judgment interest;
- (B) monies payable by an **Insured** to a **Third Party** pursuant to a settlement agreement negotiated by such **Insured** with the prior written approval of the **Insurer**; and

(C) punitive, exemplary or multiplied portion of multiple damages incurred by an **Insured**.

Enforceability of payment for punitive, exemplary and the multiplied portion of multiple damages will be governed by the applicable law that most favors coverage for such damages.

Damages do not include:

- (1) future profits, restitution, disgorgement of unjust enrichment or profits by an **Insured**;
- (2) loss, offset, restitution or return of fees, commissions, royalties, bonuses or profits of the **Insured**;
- (3) costs or expenses to comply with any order for, grant of or agreement to provide injunctive or other non-monetary relief;
- (4) taxes or loss of tax benefits;
- (5) **PCI Payments** or any contractual penalties, or liquidated damages, service credits or goodwill coupons but only to the extent that such penalties, damages, credits or coupons exceed the amount for which the **Insured** would have been liable in the absence of such agreement for penalties, damages, credits or coupons; or
- (6) **Fines and Penalties**.

Data Breach Response Costs means the reasonable and necessary costs for an **Expert** to:

- (A) identify and preserve relevant electronic data on the **Company Computer System**;
- (B) make notifications of such **Privacy Breach** to any data subject, **Third Party** or **Regulator** according to legal and regulatory duties;
- (C) determine the extent of any relevant indemnification obligations contained in any written contract between the **Insured** and any **Third Party**;
- (D) operate a call center for the benefit of affected data subjects;
- (E) procure credit monitoring services for the affected data subjects up to one year (or longer if required by law); or
- (F) procure identity monitoring and identity protection or restoration services or any similar service (including medical identity restoration, credit freezing, or credit thawing) for the affected data subjects for up to one year (or longer if required by law).

Data and System Recovery Costs means reasonable and necessary costs for an **Expert** to (i) restore a **Company Computer System** to the same level of functionality which existed immediately prior to such **Cyber Event**; (ii) restore, retrieve, repair or reinstall electronic data or software, or (iii) if such electronic data or software cannot be reasonably restored, retrieved, repaired or reinstalled, then the reasonable and necessary costs incurred by the **Company** to reach this determination.

Data and System Recovery Costs do not include any:

- (1) costs to comply with any order for, grant of or agreement to provide injunctive or other non-monetary relief;

- (2) legal costs and expenses of any type;
- (3) costs that the **Insured** would have incurred had the **Cyber Event** not occurred;
- (4) costs for the correction of incorrect manual input of electronic data;
- (5) costs to design, upgrade, maintain, or improve the **Company Computer System** or software to a level beyond that which existed prior to a **Cyber Event** unless such costs are less than or equal to the amount it would cost to design, upgrade, maintain, or improve the **Company Computer System** to the same or equivalent condition that existed immediately prior to such **Cyber Event**; or
- (6) internal costs or expenses of the **Insured** (including, but not limited to, labor costs and overhead); or
- (7) **Bricking Costs**.

Defense Costs means:

- (A) reasonable and necessary fees, costs and expenses incurred by or on behalf of the **Insured** in relation to the investigation, defense, settlement of, or response to a **Claim** and appeal thereof; and
- (B) the premium cost for appeal bonds for covered judgments or bonds to release property used to secure a legal obligation; provided the **Insurer** will have no obligation to appeal or to obtain bonds.

Defense Costs do not include any internal costs or expenses of the **Insured** (e.g. overhead, wages, salaries or other remuneration) or any **Cyber Event Costs**.

Financial Institution means a bank, credit union, securities broker-dealer, or other licensed financial service or similar investment company at which the **Company** maintains a **Transfer Account**.

Insured Person means any:

- (A) member of **Management** acting within the scope and capacity of his or her job requirements;
- (B) **Employee**;
- (C) a principal if the **Policyholder** is a sole proprietorship, or a partner if the **Policyholder** is a partnership, but only with respect to the performance of his or her duties as such on behalf of the **Company**;
- (D) any person who previously qualified as an **Insured Person** under subsections (A) – (C) above, but only with respect to the performance of his or her duties as such on behalf of the **Company**;
- (E) natural person contractor of the **Company**, but only while acting within the within the scope and capacity as such and in furtherance of the **Company's** business;
- (F) **Additional Insured**, but only as respects **Claims** against such person or entity for acts, errors or omissions of the **Company**; or

- (G) spouse, civil partner, estate, heir, executor, bankruptcy administrator, or legal representative of any natural person listed in (A) - (C) above, but solely for **Loss** arising from a covered **Claim** involving such natural person listed in (A) - (C) above.

Liability Claim means a written demand for money or services, including without limitation the institution of a civil legal complaint, a demand for arbitration, a written request for mediation or arbitration, or a written request to toll a statute of limitations. A **Liability Claim** does not include a **Regulatory Claim** or a **PCI Claim**.

Media Wrongful Act means any of the following acts committed by, or on behalf of, the **Company** in the course of creating, displaying, broadcasting, disseminating or releasing **Media Information** to the public:

- (A) defamation, libel, slander, product disparagement, trade libel, infliction of emotional distress or other torts related to disparagement or harm to the reputation or character of any person or entity;
- (B) a violation of the rights of privacy of an individual, including false light, intrusion upon seclusion and public disclosure of private facts;
- (C) invasion or interference with an individual's right of publicity, including commercial appropriation of name, persona, voice or likeness;
- (D) plagiarism, piracy, or misappropriation of ideas under implied contract;
- (E) improper deep-linking or framing;
- (F) false arrest, detention or imprisonment;
- (G) invasion of or interference with any right to private occupancy, including trespass, wrongful entry or eviction;
- (H) infringement of copyright;
- (I) infringement of domain name, trademark, trade name, trade dress, logo, title, metatag, or slogan, service mark or service name; or
- (J) unfair competition, including a violation of Section 43(a) of the Lanham Act, if alleged in conjunction with and arising out of any infringement listed in parts (H) or (I) above.

Reputation Loss means:

- (A) The net operating profit (before interest and tax) that the **Company** would have earned during the **Reputation Period** had the **Reputation Event** not occurred; plus
- (B) the **Company's** usual and regular operating expenses to the extent that such operating expenses (including payroll) must continue during the **Reputation Period**.

Reputation Loss will not include any:

- (1) loss resulting from the decision of the **Company** to suspend, cancel or lapse of any lease, contract, license or orders;
- (2) liabilities to any **Third Party**;

- (3) legal expenses or costs;
- (4) consequential loss or loss incurred as a result of unfavorable business conditions;
- (5) **Data and System Recovery Costs**;
- (6) loss resulting from a complete or partial interruption or any slowdown of the operations of the **Company** for any period of time; or
- (7) **Ransom Payments**.

Third Party means any natural or legal person, or any entity, except any **Insured**.

5. The **Sale or Ownership of Securities** exclusion is deleted in its entirety and replaced with the following:

Sale or Ownership of Securities

- (A) the ownership, sale, or the offer to sell or purchase stock or **Securities**; or
- (B) an actual or alleged violation of a securities law or regulation;

but paragraph (B) of this exclusion will not apply to **Loss** under the Regulatory Fines and Penalties insuring agreement solely with respect to a violation of Regulation S-P, Rule 30 (the "Safeguards Rule") that results directly from a **Privacy Breach**.

6. The **Natural Perils and Physical Events** exclusion is deleted in its entirety and replaced with the following:

Natural Perils and Physical Events

any fire, smoke, explosion, lightning, wind, flood, earthquake, windstorm, volcanic eruption, tidal wave, landslide, hail, act of God, or other physical event.

7. Paragraphs (A) and (B) of **Notification** under DUTIES OF THE INSURED AND OTHER CONDITIONS are deleted and replaced with the following:

- (A) Upon **Discovery** of an incident giving rise to Coverage For The Insured's Direct Loss, the **Insured** will give written notice thereof to the **Insurer** as soon as reasonably practicable, but in any event not later than 90 days after the end of the **Policy Period**.
- (B) With regard to a **Claim** giving rise to Coverage For Claims Made Against The Insured, the **Insured** will give written notice thereof to the **Insurer** as soon as reasonably practicable after a member of **Management** first becomes aware of such **Claim**, but in no event will the **Insured** give notice of a **Claim** later than (i) 90 days after the end of the **Policy Period**, or (ii) the **Extended Discovery Period** (if applicable).

8. The second paragraph of **Defense** under DUTIES OF THE INSURED AND OTHER CONDITIONS is deleted and replaced with the following:

The **Insurer** will pay actual loss of salary and reasonable expenses resulting from the attendance by an **Insured** at any mediation meetings, arbitration proceedings, hearings, depositions, or trials relating to the defense of any **Claim**, subject to a maximum of \$1,000 per day and \$10,000 in the aggregate, which amounts will be part of and not in addition to the **Aggregate Limit of Liability**.

9. **Subrogation and Recoveries** under DUTIES OF THE INSURED AND OTHER CONDITIONS is deleted and replaced with the following:

The **Insurer** will be subrogated to all of the **Insured's** available rights of recovery for all payments made by the **Insurer** under this Policy. The **Company** and all **Insureds** will do whatever is reasonably necessary to secure any such recovery rights for the **Insurer**, including the execution of any documents necessary to enable the **Insurer** effectively to bring a recovery action or suit in the name of the **Insurer, Company or Insured** (as applicable), whether such acts become necessary before or after payment by the **Insurer**.

If an **Insured** has waived its right to subrogate against a **Third Party** or an **Additional Insured** through written agreement made before an incident or event giving rise to a **Claim** or **Loss** has occurred, then the **Insurer** waives its rights to subrogation against such **Third Party** or **Additional Insured**. Any recovery received will first be applied against any payment made by the **Insurer** with any balance remaining thereafter being remitted to or retained by the **Company or Insured**. Recovery by the **Insurer** from reinsurance will not be deemed a recovery hereunder.

10. **Settlement of Claims** under DUTIES OF THE INSURED AND OTHER CONDITIONS is deleted in its entirety and replaced with the following:

Settlement of Claims

If the **Insured** refuses to consent to settle a **Claim** as recommended by the **Insurer**, the **Insurer's** liability for such **Claim** will not exceed:

- (A) the amount of **Defense Costs** incurred prior to the date of such recommendation; plus
- (B) 85% of all future **Defense Costs** incurred after the date such settlement or compromise was recommended to the **Insured** plus 85% of any **Damages** above the amount for which the **Claim** could have been resolved.

The **Insured** may settle any **Claim** where the **Damages, Fines and Penalties, PCI Payments, PCI Investigation Costs** and **Defense Costs** do not exceed 50% of the **Retention**, provided that the entire **Claim** is resolved, and the **Insured** obtains a full release on behalf of all **Insureds** from all claimants.

11. **New Subsidiaries** under GENERAL PROVISIONS is deleted in its entirety and replaced with the following:

New Subsidiaries

If during the **Policy Period** any **Company** creates or acquires a new entity it will automatically be covered under this **Policy** as a **Subsidiary**, provided that such entity does not have an annual revenue exceeding twenty-five percent (25%) of the consolidated net annual revenue of the **Policyholder** as of the beginning of the **Policy Period**. If the revenues of such entity exceed 25% of the **Policyholder's** annual revenues, then coverage under this Policy will be afforded for a period of 90 days, but only for any **Claim** that arises out of any act, error, omission, incident or event first occurring after the entity becomes so owned. Coverage beyond such 90 day period will only be available if the **Policyholder** gives the **Insurer** written notice of the acquisition, obtains the written consent of **Insurer** to extend coverage to the entity beyond such 90 day period and agrees to pay any additional premium required by the **Insurer**.

12. **Extended Discovery Period** under GENERAL PROVISIONS is deleted in its entirety and replaced with the following:

In the event of cancellation or non-renewal of this Policy by the **Company**, the **Company** will be entitled to purchase an **Extended Discovery Period** by making a request in writing not later than 90 days after expiration of the **Policy Period** and paying the additional premium listed in Item 1. of this Endorsement for such **Extended Discovery Period**. The purchase of the **Extended Discovery Period** will in no way increase the **Aggregate Limit of Liability**. Such additional premium will be deemed fully earned and not eligible for refund or repayment. The **Extended Discovery Period** will provide for extended coverage under this **Policy** only for **Claims** (i) first made against an **Insured** during the **Extended Discovery Period**, and (ii) arising out of a **Cyber Event** or **Media Wrongful Act** occurring before the end of the **Policy Period**.

13. **Other Insurance/Indemnification** under GENERAL PROVISIONS is deleted in its entirety and replaced with the following:

Other Insurance / Indemnification

Coverage under this Policy is provided only as excess over any other more specific valid and collectible insurance, including any self-insured retention or deductible thereof unless such other insurance is written only as specific excess insurance over this Policy and the **Aggregate Limit of Liability**, provided that this Policy shall be primary solely with respect to **Cyber Event Costs** covered under the **Cyber Event** insuring agreement.

Notwithstanding the foregoing, this policy will become primary and non-contributory insurance as respects any insurance maintained by an **Additional Insured** if primary insurance is required by a written contract in place between the **Additional Insured** and the **Company**, but only with respect to a **Claim** or **Loss** arising solely from the **Company's** negligent acts, errors, or omissions while performing services for, or on behalf of, an **Additional Insured**. In all other cases, this insurance shall apply in excess of any valid and collectible insurance available to any **Insured**.

14. Paragraphs (A) and (B) of **Premium Payment and Termination** under GENERAL PROVISIONS are deleted and replaced with the following:

- (A) The **Policyholder** may cancel this Policy by mailing to the **Insurer** advance written notice (including by e-mail) of cancellation.
- (B) The **Insurer** may cancel this Policy for cancellation due to non-payment of premium only by mailing to the **Policyholder** written notice stating when such cancellation will be effective. Such date of Cancellation will not be less than 60 days (or 20 days cancellation due to non-payment of premium) after the date of notice.

All other terms and conditions of this Policy remain unchanged.

This endorsement is attached to and forms a part of Policy No. ACL1268445 00 effective 10/31/2025 .

TECHNOLOGY SERVICES AND TECHNOLOGY PRODUCTS

In consideration of the premium paid for this Policy, it is hereby understood and agreed that:

1. Item 7. of the Declarations is amended to include:

COVERAGE FOR CLAIMS BROUGHT AGAINST THE INSURED	LIMIT OF COVERAGE	RETENTION
Professional and Technology Services:	\$3,000,000	\$25,000
Technology Products	\$3,000,000	\$25,000

2. **COVERAGE FOR CLAIMS BROUGHT AGAINST THE INSURED** is amended to include:

Technology Services

The **Insurer** will pay on behalf of the **Insured** any **Damages** and **Defense Costs** arising from a **Liability Claim** first made against an **Insured** during the **Policy Period** for a **Wrongful Act**.

Technology Products

The **Insurer** will pay on behalf of the **Insured** any **Damages** and **Defense Costs** arising from a **Liability Claim** first made against an **Insured** during the **Policy Period** for a **Technology Product Wrongful Act**.

3. **DEFINITIONS** is amended to include:

Retroactive Date means 10/31/2019 .

Technology Products means a computer hardware or software product, or related electronic product that is created, manufactured or developed by the **Company** for others, or distributed, licensed, leased or sold by the **Company** to others, for compensation, including software updates, service packs and other maintenance releases provided for such products.

Technology Product Wrongful Act means any negligent act, error or omission, misstatement or misleading statement by an **Insured** that results in the failure of **Technology Products** to perform the function or serve the purpose intended, or for infringement of copyright committed by the **Insured** with respect to software **Technology Products**, occurring on or after the **Retroactive Date** and prior to the end of the **Policy Period**.

Technology Services means computer and electronic technology service, including data processing, Internet services, data and application hosting, computer systems analysis, technology consulting and training, custom software programming for a specific client, computer and software systems installation and integration, computer and software support, and network management services performed by the **Insured** for others for a fee, or for free if provided in conjunction with other fee based services or products provided for compensation or to potential or existing customers as an encouragement to purchase such products or services.

Wrongful Act means any negligent act, error or omission, misstatement or misleading statement in an **Insured's** performance of **Technology Services** for others occurring on or after the **Retroactive Date** and prior to the end of the **Policy Period**.

4. **EXCLUSIONS** is amended to include:

Solely with respect to the Technology Services and Technology Products insuring agreements, no coverage will be available under this Policy with respect to any **Loss**, or any other amounts arising out of:

1. costs incurred by the **Insured** to correct, re-perform or complete any **Technology Services**; but this exclusion will not apply to the resulting loss of use of such work product resulting from or incorporating the results of **Technology Services**;
2. the amounts for which an Insured is not financially liable or which are without legal recourse to the **Insured**;
3. any obligation the **Insured** has under contract; but this exclusion will not apply to the obligation to perform **Technology Services**, or to the extent the **Insured** would have been liable in the absence of such contract;
4. any **Wrongful Act** occurring prior to the **Retroactive Date**, or any **Related Event** thereto, regardless of when such **Related Event** occurs;
5. any activities performed by or on behalf of the **Company** as an accountant, architect, surveyor, health care provider, lawyer, real estate broker or agent, civil engineer, or structural engineer;
6. any deceptive business practices, including but not limited to violations of any local, state, or federal consumer protection laws;
7. false, deceptive, or misleading advertising, inaccurate cost estimates, or failure of goods to conform with any represented quality or performance;
8. any actual or alleged promotional game, lottery or other game of chance; the value of discounts, coupons, prizes, awards or other incentives offered to the **Insured's** customers or clients;
9. any **Insured's** advising, requiring, obtaining or failing to advise, require or obtain any bond, suretyship or other form of insurance;
10. any obligation to make licensing fee or royalty payments, including but not limited to timeliness of such payments;
11. any actual or alleged violation of intellectual property rights in the creation or maintenance of any digital currency, digital asset, non-fungible token, or any unique or non-interchangeable unit of data; or
12. any costs or expenses for the withdrawal, recall, inspection, repair, replacement, reproduction, removal or disposal of: (i) **Technology Products**, (ii) work product resulting from or incorporating the results of **Technology Services**; but this exclusion shall not apply the resulting loss of use of such **Technology Products**, or the loss of use of the work product resulting from such **Technology Services**.

All other terms and conditions of this Policy remain unchanged.

This endorsement is attached to and forms a part of Policy No. ACL1268445 00 effective 10/31/2025.

PREMIUM PAYMENT AND TERMINATION ENDORSEMENT

In consideration of the premium paid for this Policy, it is hereby understood and agreed that Subsection (A) of **Premium Payment and Termination** under **General Provisions** is deleted in its entirety and replaced with the following:

- (A) The **Policyholder** may cancel this Policy by mailing to the **Insurer** advance written notice of cancellation, provided however, that the premium for this Policy will be 25% earned as of the inception date of this Policy.

All other terms and conditions of this Policy remain unchanged.

PRIOR AND PENDING LITIGATION EXCLUSION

In consideration of the premium paid for this Policy, it is hereby understood and agreed that the **Insurer** shall not make any payment under this Policy in connection with or resulting from any written demand, suit or other proceeding pending, or order, decree or judgment entered, against any **Insured** prior to 10/31/2025 or in connection with or resulting from any act, fact, circumstance or situation underlying or alleged therein.

INVOICE MANIPULATION

In consideration of the premium paid for this Policy, it is hereby understood and agreed that:

1. The aggregate sublimit applicable to all loss under this endorsement is \$250,000
2. The **Retention** applicable to each incident, event, or related incidents or events, giving rise to an obligation to pay loss under this endorsement shall be USD \$25,000
3. **COVERAGE FOR THE INSURED'S DIRECT LOSS** is amended to include:

Invoice Manipulation

To indemnify the **Company** for **Direct Net Loss** resulting directly from the **Company's** inability to collect **Payment** for any goods, products or services after such goods, products or services have been transferred to a **Third Party**, as a result of **Invoice Manipulation** that the **Insured** first discovers during the **Policy Period**.

4. **Definitions** is amended to include:

Direct Net Loss means the direct net cost to the **Company** to provide goods, products or services to a **Third Party**. **Direct Net Loss** will not include any profit to the **Company** as a result of providing such goods, products or services.

Invoice Manipulation means the release or distribution of any fraudulent invoice or fraudulent payment instruction to a **Third Party** as a direct result of a **Cyber Attack**.

Payment means currency, coins or bank notes in current use and having a face value.

All other terms and conditions of this Policy remain unchanged.

AMEND AUTHENTICATION ENDORSEMENT

In consideration of the premium paid for this Policy, it is hereby understood and agreed that subparagraph (A) of the definition of **Fraudulent Instruction** is deleted.

All other terms and conditions of this Policy remain unchanged.

This endorsement is attached to and forms a part of Policy No. ACL1268445 00 effective 10/31/2025.

CONTINGENT BODILY INJURY AND PROPERTY DAMAGE

In consideration of the premium paid for this Policy, it is hereby understood and agreed that:

1. **DEFINITIONS** is amended by the addition of:

Bodily Injury means any actual or alleged physical injury, sickness, disease or death of any natural person, including any mental anguish or emotional distress resulting from such physical injury, sickness, disease or death.

Contingent Bodily Injury and Property Damage means those **Claims** wherein the **Damages** sought by the claimant are for **Bodily Injury** or **Property Damage** which arises solely out of a **Cyber Attack**, but not if the **Insured's** own act, error or omission is the direct immediate cause of such **Claim** for **Bodily Injury** or **Property Damage**. This extension of coverage applies only if such **Claim** for **Bodily Injury** or **Property Damage** is not covered under any other policy of insurance.

Property Damage means any actual or alleged damage to or destruction of any tangible property, including loss of use thereof. Electronic data and software are not considered tangible property for purposes of this definition.

2. The **Bodily Injury Exclusion** and the **Property Damage Exclusion** are deleted in their entirety and replaced with the following:

Bodily Injury and Property Damage

(A) **Bodily Injury**; or

(B) **Property Damage**;

provided, however, that this exclusion will not apply to any **Claims** for **Contingent Bodily Injury and Property Damage** and subsection (B) of this exclusion will also not apply to **Data and System Recovery Costs** or **Bricking Costs**.

3. The **Insurer's** liability for all **Damages** arising out of **Contingent Bodily Injury and Property Damage** will not exceed \$100,000, which is part of, and not in addition to, the **Aggregate Limit of Liability**.

Nothing herein contained shall be held to vary, alter, waive or extend any of the terms, conditions, provisions, agreements or limitations of the Policy other than as above stated.

This endorsement is attached to and forms a part of Policy No. ACL1268445 00 effective 10/31/2025.

BETTERMENT COSTS

In consideration of the premium paid for this Policy, it is hereby understood and agreed that:

1. DEFINITIONS is amended to include:

Betterment Costs means the reasonable and necessary costs, subject to the **Insurer's** prior consent, to update, replace, or enhance the **Company's Computer System** to a more secure and efficient version, provided that the maximum amount the **Insurer** will pay for **Betterment Costs** is \$ \$25,000 .

2. **Data and System Recovery Costs** under DEFINITIONS is amended to include:

Data and System Recovery Costs also means **Betterment Costs**.

3. Paragraph (C) of **Improvement of Company Computer System** under EXCLUSIONS is deleted and replaced with the following:

(C) any costs to update, replace, restore, assemble, reproduce, recollect or enhance data or a **Company Computer System** to a level beyond that which existed prior to a **Cyber Event, Business Interruption Event, Supplier Interruption Event** or **Ransom Threat**; provided that this exclusion will not apply:

(1) to **Betterment Costs**; and

(2) where such costs are less than or equal to the amount it would cost to update, replace, restore, assemble, reproduce, recollect or enhance data or **Company Computer Systems** to the same or equivalent condition that existed immediately prior to a **Cyber Attack**;

under the Data and Systems Recovery insuring agreement.

All other terms and conditions of this Policy remain unchanged.

This endorsement is attached to and forms a part of Policy No. ACL1268445 00 effective 10/31/2025 .

WAR AND CYBER WAR EXCLUSION

In consideration of the premium paid for this Policy, it is hereby understood and agreed that:

1. The War, Looting and Governmental Acts Exclusion is deleted in its entirety and replaced with the following:

War and Cyber War

(A) **War**; or

(B) **Cyber War**.

2. For purposes of this endorsement only:

Computer System means computers, any software residing on such computers, and any associated devices or equipment.

Cyber War means any harmful act by, or at the direction, or under the control of, a sovereign state, conducted using a **Computer System** (or series of related, repeated or continuing harmful acts conducted using one or more **Computer System**), directed against one or more **Computer System**, that:

(A) is carried out as part of a **War**; or

(B) causes a major detrimental impact on an **Essential Function** of a sovereign state.

Cyber War will not apply to a harmful act affecting any **Company Computer System** or **Supplier Computer System** that is not physically located in a sovereign state in which **Essential Functions** have been impacted as described in (B) above.

Essential Function means any service or function of a sovereign state necessary to protect or preserve life or property, whether such function is performed by the state, a subdivision within the state or private entities, including but not limited to national defense, internal security (law enforcement), provision of healthcare services, power production and distribution, telecommunications infrastructure, administration of justice, and maintenance, operation and regulation of the financial systems (including banking and financial market infrastructure).

Supplier Computer System means a **Computer System** operated solely by a **Supplier**.

War means the use of physical force by a sovereign state against another sovereign state (whether war be declared or not), or as part of a civil war, rebellion, revolution, insurrection and/or military or usurped power.

All other terms and conditions of this Policy remain unchanged.

This endorsement is attached to and forms a part of Policy No. ACL1268445 00 effective 10/31/2025 .

SEVERAL LIABILITY NOTICE

The liability of an insurer under this contract is several and not joint with other insurers party to this contract. An insurer is liable only for the proportion of liability it has underwritten. An insurer is not jointly liable for the proportion of liability underwritten by any other insurer. Nor is an insurer otherwise responsible for any liability of any other insurer that may underwrite this contract.

The proportion of liability under this contract underwritten by an insurer (or, in the case of a Lloyd's syndicate, the total of the proportions underwritten by all the members of the syndicate taken together) is shown in this contract.

In the case of a Lloyd's syndicate, each member of the syndicate (rather than the syndicate itself) is an insurer. Each member has underwritten a proportion of the total shown for the syndicate (that total itself being the total of the proportions underwritten by all the members of the syndicate taken together). The liability of each member of the syndicate is several and not joint with other members. A member is liable only for that member's proportion. A member is not jointly liable for any other member's proportion. Nor is any member otherwise responsible for any liability of any other insurer that may underwrite this contract. The business address of each member is Lloyd's, One Lime Street, London EC3M 7HA. The identity of each member of a Lloyd's syndicate and their respective proportion may be obtained by writing to Market Services, Lloyd's, at the above address.

Although reference is made at various points in this clause to "this contract" in the singular, where the circumstances so require this should be read as a reference to contracts in the plural.

LMA5096 (Combined Certificate)

7 March 2008

SCHEDULE

INSURER		PERCENTAGE OF RISK
Associated Industries Insurance Company, Inc.		50%
Lloyds Capacity (outlined below) UMR: B2429BW2501510		50%
	SCOR Syndicate 2015 (Lead Underwriter)	12.5%
	Argenta Syndicate 2121 (Second Lead)	10%
	AEGIS Syndicate 1225	7.5%
	IQUW Syndicate 1856	7.5%
	Tokio Marine Kiln Syndicate 510	7.5%
	Everest International Syndicate 2786	5%

LLOYD'S PRIVACY POLICY STATEMENT

UNDERWRITERS AT LLOYD'S, LONDON

The Certain Underwriters at Lloyd's, London want you to know how we protect the confidentiality of your non-public personal information. We want you to know how and why we use and disclose the information that we have about you. The following describes our policies and practices for securing the privacy of our current and former customers.

INFORMATION WE COLLECT

The non-public personal information that we collect about you includes, but is not limited to:

- Information contained in applications or other forms that you submit to us, such as name, address, and social security number
- Information about your transactions with our affiliates or other third-parties, such as balances and payment history
- Information we receive from a consumer-reporting agency, such as credit-worthiness or credit history

INFORMATION WE DISCLOSE

We disclose the information that we have when it is necessary to provide our products and services. We may also disclose information when the law requires or permits us to do so.

CONFIDENTIALITY AND SECURITY

Only our employees and others who need the information to service your account have access to your personal information. We have measures in place to secure our paper files and computer systems.

RIGHT TO ACCESS OR CORRECT YOUR PERSONAL INFORMATION

You have a right to request access to or correction of your personal information that is in our possession.

CONTACTING US

If you have any questions about this privacy notice or would like to learn more about how we protect your privacy, please contact the agent or broker who handled this insurance. We can provide a more detailed statement of our privacy practices upon request.

06/03

LSW1135B

Sanctions Limitation Clause

No (re)insurer shall be deemed to provide cover and no (re)insurer shall be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose that (re)insurer to any sanction, prohibition or restriction under United Nations' resolutions or the trade or economic sanctions, laws or regulations of the European Union, United Kingdom or United States of America.

LMA3100A

5 October 2023

Biological or Chemical Materials Exclusion

It is agreed that this Insurance excludes loss, damage, cost or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with the actual or threatened malicious use of pathogenic or poisonous biological or chemical materials regardless of any other cause or event contributing concurrently or in any other sequence thereto.

NMA2962

06/02/2003

NUCLEAR INCIDENT EXCLUSION CLAUSE-LIABILITY-DIRECT (BROAD) (U.S.A.)

For attachment to insurances of the following classifications in the U.S.A., its Territories and Possessions, Puerto Rico and the Canal Zone:

Owners, Landlords and Tenants Liability, Contractual Liability, Elevator Liability, Owners or Contractors (including railroad) Protective Liability, Manufacturers and Contractors Liability, Product Liability, Professional and Malpractice Liability, Storekeepers Liability, Garage Liability, Automobile Liability (including Massachusetts Motor Vehicle or Garage Liability),

not being insurances of the classifications to which the Nuclear Incident Exclusion Clause-Liability-Direct (Limited) applies.

This Policy* does not apply:

- I. Under any Liability Coverage, to injury, sickness, disease, death or destruction
 - (a) with respect to which an insured under the Policy is also an insured under a nuclear energy liability policy issued by Nuclear Energy Liability Insurance Association, Mutual Atomic Energy Liability Underwriters or Nuclear Insurance Association of Canada, or would be an insured under any such policy but for its termination upon exhaustion of its limit of liability; or
 - (b) resulting from the hazardous properties of nuclear material and with respect to which (1) any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954, or any law amendatory thereof, or (2) the insured is, or had this Policy not been issued would be, entitled to indemnity from the United States of America, or any agency thereof, under any agreement entered into by the United States of America, or any agency thereof, with any person or organization.
- II. Under any Medical Payments Coverage, or under any Supplementary Payments Provision relating to immediate medical or surgical relief, to expenses incurred with respect to bodily injury, sickness, disease or death resulting from the hazardous properties of nuclear material and arising out of the operation of a nuclear facility by any person or organization.
- III. Under any Liability Coverage, to injury, sickness, disease, death or destruction resulting from the hazardous properties of nuclear material, if
 - (a) the nuclear material (1) is at any nuclear facility owned by, or operated by or on behalf of, an insured or (2) has been discharged or dispersed therefrom;
 - (b) the nuclear material is contained in spent fuel or waste at any time possessed, handled, used, processed, stored, transported or disposed of by or on behalf of an insured; or
 - (c) the injury, sickness, disease, death or destruction arises out of the furnishing by an insured of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any nuclear facility, but if such facility is located within the United States of America, its territories or possessions or Canada, this exclusion (c) applies only to injury to or destruction of property at such nuclear facility.
- IV. As used in this endorsement:

"hazardous properties" include radioactive, toxic or explosive properties; "nuclear material" means source material, special nuclear material or by-product material; "source material", "special nuclear material", and "by-product material" have the

meanings given them in the Atomic Energy Act 1954 or in any law amendatory thereof; "spent fuel" means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a nuclear reactor; "waste" means any waste material (1) containing by-product material and (2) resulting from the operation by any person or organization of any nuclear facility included within the definition of nuclear facility under paragraph (a) or (b) thereof; "nuclear facility" means

- (a) any nuclear reactor,
- (b) any equipment or device designed or used for (1) separating the isotopes of uranium or plutonium, (2) processing or utilizing spent fuel, or (3) handling, processing or packaging waste,
- (c) any equipment or device used for the processing, fabricating or alloying of special nuclear material if at any time the total amount of such material in the custody of the insured at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235,
- (d) any structure, basin, excavation, premises or place prepared or used for the storage or disposal of waste,

and includes the site on which any of the foregoing is located, all operations conducted on such site and all premises used for such operations; "nuclear reactor" means any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of fissionable material. With respect to injury to or destruction of property, the word "injury" or "destruction" includes all forms of radioactive contamination of property.

It is understood and agreed that, except as specifically provided in the foregoing to the contrary, this clause is subject to the terms, exclusions, conditions and limitations of the Policy to which it is attached.

* NOTE: As respects policies which afford liability coverages and other forms of coverage in addition, the words underlined should be amended to designate the liability coverage to which this clause is to apply.

NMA1256

17/03/1960

**RADIOACTIVE CONTAMINATION EXCLUSION CLAUSE -
PHYSICAL DAMAGE - DIRECT**

This policy does not cover any loss or damage arising directly or indirectly from nuclear reaction nuclear radiation or radioactive contamination however such nuclear reaction nuclear radiation or radioactive contamination may have been caused * NEVERTHELESS if Fire is an insured peril and a Fire arises directly or indirectly from nuclear reaction nuclear radiation or radioactive contamination any loss or damage arising directly from that Fire shall (subject to the provisions of this policy) be covered EXCLUDING however all loss or damage caused by nuclear reaction nuclear radiation or radioactive contamination arising directly or indirectly from that Fire.

* NOTE. - If Fire is not an insured peril under this policy the words "NEVERTHELESS" to the end of the clause do not apply and should be disregarded.

NMA1191

07/05/1959

SERVICE OF SUIT CLAUSE (U.S.A) – LLOYD'S

In consideration of the premium paid for this Policy, it is hereby understood and agreed that the Service of Suit provision is deleted in its entirety and replaced with the following:

This Service of Suit Clause will not be read to conflict with or override the obligations of the parties to arbitrate their disputes as provided for in any Arbitration provision within this Policy. This Clause is intended as an aid to compelling arbitration or enforcing such arbitration or arbitral award, not as an alternative to such Arbitration provision for resolving disputes arising out of this contract of insurance (or reinsurance).

It is agreed that in the event of the failure of the Underwriters hereon to pay any amount claimed to be due hereunder, the Underwriters hereon, at the request of the Insured (or Reinsured), will submit to the jurisdiction of a Court of competent jurisdiction within the United States. Nothing in this Clause constitutes or should be understood to constitute a waiver of Underwriters' rights to commence an action in any Court of competent jurisdiction in the United States, to remove an action to a United States District Court, or to seek a transfer of a case to another Court as permitted by the laws of the United States or of any State in the United States.

It is further agreed that solely as respects the subscribing insurers obligations under this Policy (as stated in the Quota Share Security Schedule), service of process in such suit may be made upon the following, as applicable:

Lloyd's America, Inc,
Attention: Legal Department,
280 Park Avenue, East Tower, 25th Floor,
New York, NY 10017

Mr. Stephen Ungar, Secretary
Associated Industries Insurance Company, Inc.
c/o Service of Process Intake
800 Superior Ave. E., 21st Floor
Cleveland, OH 44114

and that in any suit instituted against any one of them upon this contract, Underwriters will abide by the final decision of such Court or of any Appellate Court in the event of an appeal.

The above-named are authorized and directed to accept service of process on behalf of Underwriters in any such suit and/or upon the request of the Insured (or Reinsured) to give a written undertaking to the Insured (or Reinsured) that they will enter a general appearance upon Underwriters' behalf in the event such a suit shall be instituted.

Further, pursuant to any statute of any state, territory or district of the United States which makes provision therefor, Underwriters hereon hereby designate the Superintendent, Commissioner or Director of Insurance or other officer specified for that purpose in the statute, or his successor or successors in office, as their true and lawful attorney upon whom may be served any lawful process in any action, suit or proceeding instituted by or on behalf of the Insured (or Reinsured) or any beneficiary hereunder arising out of this contract of insurance (or reinsurance), and hereby designate the above-named as the person to whom the said officer is authorized to mail such process or a true copy thereof.

All other terms and conditions of this Policy remain unchanged.

This endorsement is attached to and forms a part of Policy No. ACL1268445 00 effective 10/31/2025 .

SEC DISCLOSURE COSTS ENDORSEMENT

In consideration of the premium paid for this Policy, it is hereby understood and agreed that:

1. The **Insurer** will indemnify the **Company** for **SEC Disclosure Costs** incurred by the **Company** directly resulting from a **Cyber Event** that is first **Discovered** during the **Policy Period**.
2. Definitions is amended to include the following:

SEC Disclosure Costs means the reasonable and necessary costs for an **Expert** to:

- (A) advise the **Company** on whether a **Cyber Event** is a material cyber security incident pursuant to the Securities Exchange Act of 1934, as amended, or any regulation promulgated thereunder, requiring either a Form 6-K or Form 8-K filing pursuant to the Security and Exchange Commissions' Cybersecurity Risk Management, Strategy, Governance and Incident Disclosure rule (RIN 3235-AM89) (the "SEC Disclosure Rule"); and
- (B) prepare and file a Form 6-K or Form 8-K in compliance with the SEC Disclosure Rule, including filing fees.

SEC Disclosure Costs will not include: (i) **Cyber Event Costs**; or (ii) any fees or costs relating to any other disclosures, including any Form 10-K or Form 20-F disclosures.

3. The **Retention** applicable to each incident, event, or related incidents or events, giving rise to an obligation to pay **SEC Disclosure Costs** is \$25,000 .
4. The maximum amount the **Insurer** will pay for **SEC Disclosure Costs** will not exceed \$50,000 , which is part of, and not in addition to, the **Aggregate Limit of Liability**.

All other terms and conditions of this Policy remain unchanged.